

BUILDING THE A2J LAWYER: ACCESS TO JUSTICE COMPETENCIES AND EDUCATIONAL PATHWAYS IN CANADA

REPORT OF THE ACCESS TO JUSTICE EDUCATION INITIATIVE

SEPTEMBER 2026



TABLE OF CONTENTS

ACKNOWLEDGEMENTS	4
GLOSSARY	5
INTRODUCTION	8
EXECUTIVE SUMMARY	11
 PART 1: CONTEXT – THE A2J EDUCATION CHALLENGE	 15
I. Literature on A2J Educational Pathways.....	15
1. The State of A2J Education	15
2. The Importance of A2J Education	17
3. How to Teach A2J	18
II. Background on A2J Competencies in Canada.....	21
1. Federation of Law Societies of Canada National Requirement.....	22
2. Jordan Furlong Report (2022)	23
3. Western Canada Competency Profile / Competencies for Entry to Legal Practice (2024 – ...)	24
4. Canadian Centre for Professional Legal Education (CPLED)	25
III. Approaches to A2J	25
1. People-centred Justice	26
2. Indigenous Perspectives on A2J	27
3. A2J and Community Experiences	29
 PART 2: METHODOLOGY	 32
I. Defining A2J for the Project.....	32
II. Research Scope and Limitations.....	33
1. Professional A2J Competencies—Scope	33
2. A2J Educational Pathways—Scope	33
3. Research Limitations	33
III. Data Collection and Analysis.....	35
1. Data Collection—Pathways	35
2. Data Collection—Competencies.....	35
3. Qualitative and Quantitative Analysis	35
IV. Project Consultation.....	36

PART 3: A2J COMPETENCIES	38
I. Introduction	38
II. Key Considerations	38
III. A2J Competencies in Canada: Key Findings	39
1. Competency Frequency	40
2. Regional Differences	42
3. Assessment Categories, Criteria, and Proficiency Levels	44
4. Uncovering an A2J Competency Inventory	45
IV. A2J Competencies on the International Stage	49
1. A2J Competencies in the United States of America	49
2. A2J Competencies in England and Wales	53
3. A2J Themes Emerging from England and Wales	55
4. A2J Competencies in Australia (national)	57
5. Uncovering A2J Competencies from the Australian Data	60
6. Conclusions from the International Review	62
PART 4: A2J EDUCATION PATHWAYS—LAW SCHOOLS	64
I. Introduction	64
II. A Look at the Numbers	64
1. Course Content Type	65
2. Legal Clinics, Field Schools, and Other Experiential Learning Activities	66
3. Faculty / Student Initiatives (includes student clubs/orgs)	66
III. Pathways in Action: Key Findings	67
1. A2J Knowledge Foundations (via traditional, doctrinal course delivery)	70
2. Legal Clinics, Field Schools, and other Experiential Learning Activities	72
3. Faculty and Student-led A2J Pathways	74
4. A Note About Assessment Methods	76
5. Mapping the Overall A2J Educational Pathways	78
6. Discussion – Gaps and Opportunities	81
A CALL TO ACTION FOR A2J EDUCATION	82
APPENDICES	83

RECOMMENDED CITATION:

Valerie L. Le Blanc, J  r  my Boulanger-Bonnely, Robert Lapper, KC & Michelle Lawrence, *Building the A2J Lawyer: Access-to-Justice Competencies and Educational Pathways in Canada*, (September 2026).

DISCLAIMER

This report is informational and for research purposes only. This report is not legal advice. The analyses, interpretations, and findings reflect the data available at the time of writing. The data may have since changed. Reasonable care and efforts were taken to ensure the accuracy and reliability of the report contents, but the authors make no representations or warranties on future applicability. The authors do not undertake to update or revise this report to reflect post-publication changes to the data gathered. Readers should exercise independent judgment and assess the findings against the educational pathways and practice standards of their respective jurisdictions.

The views expressed in this report should not be attributed to McGill University or the University of Victoria. BC ACE disclaims all responsibility for damage or loss of any kind that any person or entity may incur by relying on the report's content.

◆ ACKNOWLEDGEMENTS

The team of the Access to Justice (A2J) Education Initiative – a project led by researchers at the BC Access to Justice Centre for Excellence (BC ACE) and McGill University’s Faculty of Law – acknowledge the work of the legal educators who took the time to share their views on A2J pathways in legal education. They identified important resources and offered meaningful insights to inform our review of course descriptions and other initiatives within their respective law faculties.

The team extends special thanks to Jessica Asch, Co-Research Director, and Tara Williamson, Co-Research Director, Indigenous Law Research Unit, University of Victoria, Faculty of Law, for their expertise and time to review our A2J course outline. They shared invaluable advice on how we could ensure that Indigenous legal traditions and their concepts, principles, and teachings around A2J are centred throughout the course, and when outlining the scope of what A2J means for the project.

The team acknowledges the contributions of present staff members to the design, management, and completion of the research, this report, and the course module and resources for this project. Valerie L. Le Blanc, Legal Educator, acted as lead research analyst and writer for the report. Prof. Jérémy Boulanger-Bonnely served as the project’s principal investigator and, in that capacity, worked closely with her during the research phase, led outreach and consultation, and developed the A2J online course. Robert Lapper, KC, aided with project planning and content review. Michelle Lawrence, BC ACE’s Director, led executive planning and oversight.

The team also thanks the law students who assisted on this project for their work:

- Fadumo Hussen (McGill University, Faculty of Law)
- Ibrahim Musa (McGill University, Faculty of Law)
- Rita Slaoui (McGill University, Faculty of Law)

The A2J Education Initiative is generously funded by:



◆ GLOSSARY

This report explores competencies and educational pathways related to access-to-justice. To provide helpful background for the reader, this section describes some key terms used throughout the report, which often hold a distinct meaning and may be context- or jurisdiction-specific. The list of terms in this glossary is not exhaustive. Nor do these terms replace other accepted meanings in legislation, case law, or regulatory guidance.

2SLGBTQIA+: Two Spirit (2S), Lesbian (L), Gay (G), Bisexual (B), Trans (T), Queer (Q), Questioning (Q), Intersex (I), and Asexual/Aromantic (A).¹ The (+) represents anyone whose sexual orientation or gender identity(ies) go beyond those listed here.

Access represents a pathway to justice shaped by a person’s ability to understand, use, and receive benefits or meaningful outcomes from the justice system or other justice-adjacent institutions and services. Access is best understood through the lens of a justice seeker’s experience with their legal problem.² Whether a person has access (to justice) depends on many factors. **Access to justice** is abbreviated as **A2J** throughout the report.

Clinical legal education is an experiential teaching methodology used in law school that puts a student’s substantive legal knowledge into practice. Whether offered as a standalone course or supervised placement, legal clinics use problem-based, interactive teaching methods to give students direct training in working with clients, communities, or groups. Many students work at their law school legal clinic or a partnering law firm. Other clinical placements may include community legal clinics, government offices, non-governmental organizations, or field schools.³

¹ See e.g. QMUNITY “Queer Glossary: A to Q Terminology” (Vancouver: last updated 29 August 2025) online: <<https://www.qmunity.ca/post/queer-glossary-a-to-q-terminology>>.

² See e.g. Trevor Farrow, “What is Access to Justice?” (2014) 51:1 Osgoode Hall LJ 957 at 980: “Put differently, understanding the lived experiences of those who use—and who are sometimes subjected to—the justice system will often require a deliberate examination of the specific needs and differences between people and their lived experiences in order to treat those people as equals. From these responses, it is clear that an accessible justice system must be one that understands and can embrace the importance of social context for those who use it, particularly for the increasingly diverse communities that the system is designed to serve.” See also The Honourable Thomas A. Cromwell, C.C., former Justice of the Supreme Court of Canada, “Access to Justice: Towards a Collaborative and Strategic Approach” (33rd Viscount Memorial Lecture, 27 October 2011), (2012) 63 UNBLJ 38 at 39: “[...] members of our society would have appropriate access to civil and family justice if they had the knowledge, resources and services to deal effectively with civil and family legal matters.”

³ Roxanne Mykitiuk & C. Tess Sheldon, “Confronting Accessibility in Clinical Legal Education: Human Rights Law and the Accommodation of Law Students with Disabilities in External Placements” (March 2020) 32: Art 5 Osgoode Hall Journal of Law and Social Policy 67 at 67.

Competency is a person’s ability to “carry out a task or perform a function”⁴ to render a workable outcome or output. Competence in law or legal practice reflects a law student or legal professional’s baseline level of knowledge, skill, and ability to perform duties that meet the practice standards of a competent lawyer.⁵ Legal regulators define “competence” in their respective *Codes of Professional Conduct*.⁶

Competency Frameworks describe what a professional needs to know and be able to do to perform their job effectively.⁷ In the legal context, a competency-based framework sets out the key knowledge, practice skills, and personal qualities expected of a legal professional.⁸ Legal professionals, regulators, and justice seekers can then use this framework as a practice standard against which they can assess performance in each competency.⁹

Dispute Resolution is a mechanism that people use to resolve disputes. People can settle legal issues in many ways, such as negotiation, mediation, arbitration, or going to court. Each dispute resolution option offers both advantages and disadvantages to those involved. Choosing the best option depends on several factors and may require participating in more than one option to reach an agreeable outcome.

Experiential Learning is a teaching methodology that incorporates a practice-based “active learning and reflective approach” within an existing course.¹⁰ Experiential learning uses activities and assessments that build practice skills responding to the individual needs of various people, groups, and communities. Some experiential learning models include mentorship and critical self-reflection.

Indigenous Dispute Resolution relies on interpreting and applying Indigenous laws, legal orders, governance systems, and traditions to everyday legal issues by people and “decision-makers

⁴ Jordan Furlong, Law21, *A Competence-Based System for Lawyer Licensing in British Columbia: Interim Report*, (Vancouver: 10 May 2022) at 21, online (pdf): <https://www.lawsociety.bc.ca/getContentAsset/676ef5e8-b9dd-4c60-ba67-3b02220a7ffd/dfc3d011-8f63-43f6-9ed8-4b444333a1d0/Furlong_Report_-_A_Competence-Based_System_for_Lawyer_Licensing_in_BC.pdf?language=en-CA> [Furlong Report].

⁵ *Ibid* at 21.

⁶ See e.g. Law Society of British Columbia, *Code of Professional Conduct for British Columbia (BC Code)*, Chapter 3 – Relationship to Clients, s 3.1 “Competence”, online: <<https://www.lawsociety.bc.ca/for-lawyers/act-rules-and-code/code-of-professional-conduct/chapter-3-%E2%80%93-relationship-to-clients/>>.

⁷ Furlong Report, *supra* note 4 at 23.

⁸ *Ibid*.

⁹ *Ibid*.

¹⁰ See e.g. Gemma Smyth, Samantha Hale & Neil Gold, “Clinical and Experiential Learning in Canadian Law Schools: Current Perspectives” (2017) 95:1 Can Bar Rev 151 at 156, 2017 CanLIIDocs 154 (last modified 24 December 2020), online: <<https://canlii.ca/t/73b>>.

with knowledge of the traditions and teachings in which the laws are grounded”.¹¹ Indigenous Dispute Resolution is both contextual and distinct from colonial justice frameworks. This process aims to resolve conflicts by recognizing that Indigenous peoples and communities operate within individual and collective rights at the community, state, and international level.¹²

Justice System “refers collectively to the agencies, establishments, and institutions responsible for administering or enforcing the law, organized primarily around civil or criminal law matters”.¹³

Pathways in legal education map out the route that law students can take to learn about A2J in law school. They illustrate “how” law schools teach A2J principles and skills. Pathways may include traditional courses, specialized coursework or programs, legal clinics or experiential learning opportunities, community placements, field schools, and faculty- or student-led initiatives.

People-centred justice places the justice seeker¹⁴ at its core, rather than justice institutions. Grounded in real-world evidence of people’s legal needs, people-centred justice recognizes that a person’s legal problems are multifaceted and are often embedded in other problems of everyday life.¹⁵ A people-centred justice practice lens “prioritizes accessible, flexible, and interdisciplinary services” and empowers the justice seekers to resolve their legal issues through local and community-based resources.¹⁶

¹¹ British Columbia Law Institute, *Navigating Shared Waters: Study Paper on Indigenous-Led Conflict Resolution*, Study Paper No 15 (July 2025) at 12-13, online (pdf): <<https://www.bcli.org/wp-content/uploads/BCLI-Study-Paper-on-Indigenous-Led-Conflict-Resolution.pdf>>.

¹² *Ibid* at 14.

¹³ Legal Information Institute, “Wex: Justice System” (last modified September 2025), online: <https://www.law.cornell.edu/wex/justice_system>.

¹⁴ Roderick Macdonald distinguishes “users” from “justice seekers”, noting that “some population groups (especially marginalized populations) do not have fixed justice preferences [...] and do not have fixed preferences about the optimal means [...] for negotiating these preferences”, and therefore that focusing on how people use justice institutions misses how justice may also be sought and accessed in “informal sites of normative interaction”: Roderick A. Macdonald, “Access to Civil Justice” in Peter Cane & Herbert M. Kritzer, eds, *The Oxford Handbook of Empirical Legal Research* (Oxford: Oxford University Press, 2010) 493 at 515.

¹⁵ J  r  my Boulanger-Bonnely, “Person-Centred Justice and Dispute Resolution: The Potential of Lay Courts” (2024) 39:3 CJLS 404 at 434.

¹⁶ *Ibid*.

◆ INTRODUCTION

This section explains the genesis of the A2J Education Initiative. It outlines why we conducted a project to map A2J competencies and educational pathways, and the prior work from BC ACE which informed this project.

Why map A2J competencies and educational pathways?

A2J is one of the most pressing issues facing our justice system. Almost everyone will encounter one or more serious legal problems in their lifetime.¹⁷ An overwhelming majority (87%) of those faced with such a problem will seek to resolve it, although primarily outside the formal justice system.¹⁸ Despite these efforts, only about 21% of those who experience a serious problem in three years will resolve it within that period, leaving most legal needs unmet.¹⁹ The causes of that situation are multiple, as are the consequences for individuals, communities, and institutions.

These observations have important implications for legal education. The legal profession aspires to improve A2J for all.²⁰ Yet, to shape a legal profession that truly prioritizes A2J, legal educators must reimagine and expand the traditional law school curriculum. Law schools must equip students not only with substantive knowledge of the law, but also with the competencies, knowledge, and tools that they need to build a people-centred, reflective law practice.²¹

This idea is not novel. In 2013, the Access to Justice Committee of the Canadian Bar Association (“CBA”) released a report which urged the profession to invest in law students as future

¹⁷ See e.g. Trevor C.W. Farrow & Lesley A. Jacobs, “Introduction: Taking Meaningful Access to Justice in Canada Seriously” in Trevor C.W. Farrow & Lesley A. Jacobs, eds, *The Justice Crisis: The Cost and Value of Accessing Law* (Vancouver: UBC Press, 2020), 3 at 11.

¹⁸ Laura Savage & Susan McDonald, “Experiences of serious problems or disputes in the Canadian provinces, 2021” (Ottawa: Statistics Canada, 2022) at 3, online (pdf): <<https://www150.statcan.gc.ca/n1/en/pub/85-002-x/2022001/article/00001-eng.pdf>>.

¹⁹ *Ibid.*

²⁰ See e.g. Canadian Bar Association, Access to Justice Committee, *Reaching equal justice report: an invitation to envision and act* (Ottawa: 2013), online (pdf): <https://www.cba.org/cbamedialibrary/cba_na/images/equal%20justice%20-%20microsite/pdfs/equaljusticefinalreport-eng.pdf> [CBA, *Reaching Equal Justice*].

²¹ Reflective practice “starts from the premise that the act of reflection integrates technical knowledge or theory (what we need to “know”) with practice or skill (what we have to “do”) to develop professional competence”: Michele M. Leering, “Integrated Reflective Practice: A Critical Imperative for Enhancing Legal Education and Professionalism” (2017) 95:1 Can B Rev 47 at 58-59. It is “a dialogue of thinking and doing through which [we] become more [...] skillful”: Donald A Schön, *Educating the Reflective Practitioner* (San Francisco: Jossey-Bass, 1987) at 31. See also Michele Leering, “Conceptualizing Reflective Practice for Legal Professionals” (2014) 23 JL & Soc Pol’y [i].

A2J practitioners. Law schools, through enhanced research and instruction on A2J lawyering, were tasked to:

[...] take a dual focus to integrating access to justice into education, by establishing requirements for all students and supporting opportunities for those particularly interested in access to justice. All graduating law students must have a basic understanding of issues relating to access to justice and know that fostering access to justice is an integral part of their professional responsibility [...] Steps could be taken to encourage students who want to contribute more in this area, such as special internships, supporting innovations and research paper prizes.²²

In 2014, the CBA similarly noted that as client demand for accessible legal services increases, legal education providers must innovate to give law students greater flexibility and choice in how they are educated and trained.²³ The CBA recommended that legal educators integrate practice-based learning into substantive law courses, to effectively shift student learning into “translational knowledge”.²⁴ Recommendations also included exploring new educational models that offer opportunities to collaborate with lived-experience experts and other professionals, and that prioritize clinical and work placements.²⁵

More than ten years later, despite these calls and recommendations, the Action Committee on Access to Justice in Civil and Family Matters observed that A2J education remains “piecemeal and largely dependent on course subject matter and/or on the interests of professors”.²⁶ While some universities offer comprehensive A2J education and training opportunities to their students, others have yet to do so. Beyond the law school experience, legal professionals in practice could benefit from new opportunities to enhance their A2J competencies. However, as the Action Committee also

²² *Ibid* at 122.

²³ Canadian Bar Association, *Futures: Transforming the Delivery of Legal Services in Canada* (Ottawa: August 2014) at 57-58, online (pdf): <<https://cba.org/getmedia/a93c7208-99dc-48f8-a037-a5b3ee3266f0/Futures-Final-eng.pdf>> [CBA, *Futures Report*].

²⁴ *Ibid* at 59: “Translational knowledge” is defined as “the ability to turn critical knowledge of legal concepts, regulatory processes, and legal culture into actual problem-solving ability in practice”.

²⁵ *Ibid* at 58-60.

²⁶ Action Committee on Access to Justice in Civil and Family Matters, *A2J & Legal Education* (December 2023) at 4, 26, online (pdf): <<https://static1.squarespace.com/static/60804beaba3bc03016513a59/t/656e35264943ee3bb7caefc/1701721387767/AJ2-LegalEdu-Report-English-Final-Dec1.pdf>> [Action Committee, *A2J & Legal Education*].

noted, the dialogue around A2J education is growing,²⁷ and further research will clarify what A2J competencies students should develop, and how they might do so.

BC ACE's Prior Work on A2J Education

Over the past few years, BC ACE heeded that call by researching the core competencies required of effective, people-centred A2J lawyers and the avenues available to law students seeking to achieve these core competencies while in law school.

In May 2024, Prof. Robert Lapper, KC, shared preliminary findings at a national gathering of A2J scholars, policy makers, and practitioners.²⁸ He outlined varying approaches taken by law schools in Canada and abroad to foster A2J knowledge and skills. He introduced the concept of a Canadian certificate program, to be sponsored by a professional organization in partnership with academic leaders, which would encourage law students to develop their A2J competencies while in law school. He set out potential program requirements, including completion of core and supplemental A2J courses, clinical and experiential learning offerings with skill development opportunities, and impactful research and design projects.

Professor Lapper's research and its reception highlighted a strong desire among professional and academic leaders to engage in a deeper, more systematic review of the knowledge and skills an effective A2J advocate should possess. It also showed that legal professionals and educators share a goal to develop a program of learning that both equips and encourages law students to pursue careers in people-centred justice.

What is BC ACE?

The CBA's 2013 *Reaching Equal Justice* report proposed that, by 2030, three Canadian law schools establish centres of excellence for A2J research. In 2015, the BC Access to Justice Centre for Excellence (BC ACE), hosted at the University of Victoria, Faculty of Law, began its journey to address the growing need to improve A2J in Canada through a people-centred lens. BC ACE understands that law students and legal professionals need to cultivate and maintain particular – and highly specialized – knowledge and skills to effectively deliver people-centred services. The research team is actively engaged in the study of people-centred justice initiatives through research and scholarly publications.

²⁷ *Ibid* at 5.

²⁸ Robert Lapper, KC, "Access to Justice—What do we need to do and be?" (Presentation delivered at the Person-Centred Justice Workshop, Université de Montréal, Montreal, May 2024).

◆ EXECUTIVE SUMMARY

BC ACE A2J Education Initiative: Project Background and Rationale

In September 2025, BC ACE created the A2J Education Initiative to help close the remaining A2J educational pathway gaps that exist today.²⁹ With generous funding from the CBA Law for the Future Fund, and anchored by Professor Lapper’s research findings, the Initiative has two main facets.

The first facet is research-focused. The research team identified the knowledge and skills that people-centred A2J work requires, and isolated which educational pathways are currently offered to law students to develop these skills. This report presents the findings from that research, highlighting the gaps in A2J education. The second prong of the Initiative aims to fill these gaps by offering a stand-alone ‘Introduction to Access to Justice’ course that is freely available to the public but tailored for law students and legal professionals.

Research Objectives

The overarching objective of this research is to understand the knowledge and skills required for people-centred A2J lawyering. The goal is to identify core A2J competencies and to illustrate the educational pathways that currently exist, or that could be introduced, to achieve them.

The research team identified the following competency research questions:

- **Which** competencies do lawyers need to build an A2J, people-centred practice?
- **How** do legal regulators define and set expectations for education, training, and skill-building to meet these competencies in practice?
- **What gaps and opportunities** can we fill with our course and project resources?

The scope of the competency review involved examining provincial and territorial law society/legal regulator resources, along with select international jurisdictions.

The research team identified the following pathway research questions:

²⁹ The A2J Education Initiative is a project co-designed and co-led by J  r  my Boulanger-Bonnely, Professor of Law, McGill University and Professors Michelle Lawrence and Robert Lapper, KC at BC ACE, University of Victoria, Faculty of Law.

- **How** do law schools teach A2J concepts and principles?
- **Which** A2J pathways dominate?
- **Where** do A2J pathways appear in the law school curriculum?
- **What** are the **gaps** and **opportunities**?

The pathways research involved structured, online comparative data reviews of all 24 national law school curricula, clinical or experiential learning programs, and related student- or faculty-led A2J initiatives. The team also reviewed discrete law-adjacent faculty courses and/or clinical programs.

The project research occurred from February to July 2026, with consultations running from April to July 2026.

Research Snapshot

In total, the research team gathered and reviewed the following data points:

- 13 provincial and territorial law societies
- 3 international jurisdictions
- 24 Canadian law faculties
- 326 courses, representing a second-stage review that drew from almost 500 total courses
- 133 clinical/experiential learning programs
- 189 faculty- and student-led initiatives

Key Findings on A2J Competencies

A2J competency lies in a lawyer's ability to combine multiple professional competencies that centre a client's personal circumstances and goals. An A2J, people-centred lawyer does not simply understand what A2J is. They must recognize that clients do not experience legal systems and barriers on equal terms, and must mobilize a range of competencies to help them overcome those. More precisely, A2J lawyers must know and practice effective communication strategies, employ meaningful and diverse efforts to understand the client's experiences and objectives, provide useful and actionable advice, manage professional relationships, identify appropriate and timely dispute resolution processes, advocate effectively and offer services ethically, reliably, and sustainably.

A2J-specific competencies can be placed into two categories: 1) direct A2J competency; and 2) required supporting competencies that foster A2J practice. Direct competencies include plain-language communication; proportionate, client-tailored advice; active listening; collaborative

practice; EDI and trauma-informed practice; building and keeping client relationships; Indigenous and Reconciliation competencies; responsible use of technology, including generative AI; dispute resolution and proportionate problem solving; financial awareness and management; and well-being. The focus on EDI and Indigenous-specific competencies distinguishes Canada from the international frameworks reviewed.

Our research reveals a shift towards people-centred competencies as evidence of practice-ready lawyering in Canada, particularly in more recent competency frameworks (WCCP/CELP, Quebec's 2025 Framework). Together with the supporting knowledge and skills required to achieve these competencies, this shift is poised to transform traditional professional competencies into their practice-ready forms. Increased use of people-centred frameworks to shape bar admission testing and new lawyer readiness to practice can prompt a new way of lawyering in Canada.

However, while this shift is encouraging, a gap remains in how people-centred competencies are assessed. While 83.3% of competency records are mandatory, only 69.7% are tied to an assessment category, and most assessment methods continue to favour written and traditional skills, although newer frameworks are embracing different methods including client simulation, interviewing and negotiation. Comparison with frameworks from abroad suggests further opportunities, including stating clearer duties toward the justice system such as pro bono lawyering and participation in law reform (United States); greater integration of the concept of vulnerability (England & Wales); and a clearer set of performance indicators for all competencies (Australia).

Key Findings on A2J Pathways

Our research on pathways is encouraging in many respects. All 24 Canadian law faculties reviewed as part of the project teach A2J in some form, and they all have at least one legal clinic (5.5 on average) through which they provide students with hands-on A2J experience. While only a fraction of the courses reviewed expressly mention “access to justice”, A2J is not confined to courses bearing justice-oriented titles. Rather, it often appears within and across traditional substantive law courses, and some faculties even make it a cross-cutting objective of their program. These pathways are all important: Dedicated A2J courses provide depth, but embedded A2J integration in substantive law courses offers greater reach, especially in mandatory or foundational courses.

Our research also reveals many opportunities. Most A2J teaching is currently doctrinal (76.5% of courses reviewed), with only 37 skills-based and 38 experiential courses. While 121 courses focus on A2J knowledge and system reform, only 11 focus on people-centred competencies, with particular gaps around client relationship, accessible communication, trauma-informed practice

and technology. Similarly, faculty- and student-led initiatives primarily foster an A2J culture and discussions about system-level issues. Legal clinics are the prime site where knowledge is turned into practice, but they may not be available to all students, and they rarely document learning outcomes in relation to A2J competencies. More broadly, assessments in courses remain fragmented and focused on traditional, written work (71.9%), while skills-based and reflective methods are rare. There is an opportunity to develop additional skills-based and experiential content and assessments around A2J in both dedicated and embedded courses, and in legal clinics.

The timing of A2J education is also subject to improvement. A2J courses are mostly elective (74.8% of the courses reviewed), and most are in upper years. The foundation of A2J knowledge and skills that the Canadian Bar Association called for in 2013 is not yet guaranteed. Teaching A2J earlier, and in mandatory courses, can provide students with an additional critical lens through which to approach the rest of their program.

Finally, in line with the Truth and Reconciliation Commission Calls to Action, Indigenous Law and Justice feature prominently across the substantive law domain, and serve as an important pathway to learning about important facets of A2J. Expanding A2J education in Canadian law schools requires expanding the curriculum to include doctrinal, skills-based, and experiential learning about Indigenous Peoples, Law and Legal Orders, colonialism, and meaningful reconciliation practices.

Structure of the Report

This report is organized into four parts, as follows:

Part 1 introduces the reader to the A2J education challenge from both a literature review background and insights into Canada's A2J competency landscape. This section also considers people-centred justice and conceptions of A2J through various community lenses.

Part 2 frames an A2J definition for the project, and outlines the research scope and methodology.

Part 3 reveals the A2J competency landscape in Canada and within select international jurisdictions.

Part 4 identifies the A2J educational pathways across Canadian law school curricula, clinical and experiential programs, and faculty- and student-led initiatives.

The report concludes with a 'call to action' for A2J education that consolidates key findings from Parts 3 and 4. This report includes 7 tables, 9 figures, and 10 Appendices.

◆ PART 1: CONTEXT – THE A2J EDUCATION CHALLENGE

In this part of the report, we review the context that inspired and shaped the A2J Education Initiative. We first (I) review the literature on A2J educational pathways and (II) trace efforts to develop national and regional competency frameworks in Canada. We then provide (III) further context on A2J itself and the various perspectives that shape how we approached that concept in the context of this report, including people-centred justice, and conceptions of A2J from the perspective of Indigenous peoples, BPOC communities, and LGBTQQIA+ communities.

I. Literature on A2J Educational Pathways

Existing literature on A2J educational pathways in Canada and abroad addresses three main questions, the answers to which provide the foundation for our research:

1. *What* is the current state of A2J education?
2. *Why* is it important to teach A2J, and why should A2J educational pathways be enhanced?
3. *How* should A2J be taught, i.e. through which curricular approaches and methods?

1. The State of A2J Education

In 2013, the critical examination of A2J education in Canada moved to centre stage. The CBA's *Reaching Equal Justice* report, mentioned in the Introduction, noted that although “[s]ome law schools ha[d] attempted to address access to justice by weaving relevant issues into mandatory basic courses, optional seminars and clinic courses”, significant gaps remained.³⁰ Notably, it remarked that the Federation of Law Societies’ national competency requirements did not include A2J as a required competency.³¹ The CBA report set out a strategy to bridge the A2J education gap and called for increased opportunities for law students to engage with A2J in law school.³²

At around the same time, the Action Committee on Access to Justice in Civil and Family Matters examined how different legal institutions and actors could create a justice system that is “accessible, responsive and citizen-focused.”³³ The *Roadmap for Change* report delivered a nine-point

³⁰ CBA, *Reaching Equal Justice*, *supra* note 20 at 120.

³¹ *Ibid.*

³² *Ibid* at 122.

³³ Action Committee on Access to Justice in Civil and Family Matters, *Access to Civil & Family Justice: A Roadmap for Change* (October 2013) at i (Foreword), online (pdf):

A2J roadmap that challenged “law schools, bar admission programs and continuing legal education providers” to put A2J “at the forefront of Canadian legal education” by 2016.³⁴ Recommendations from the report included developing or expanding A2J modules and courses that teach students how to consider the needs of diverse people, groups, and communities in their legal practice; skills-based learning and training in dispute resolution; and community-based experiential learning opportunities.³⁵

Ten years later, in 2023, the Action Committee conducted a progress review of its roadmap and noted increased efforts to ground A2J educational pathways in mandatory and optional courses, guest lectures, and volunteer opportunities.³⁶ The Action Committee also found that most law students surveyed for the project viewed A2J initiatives as an important aspect of their law school’s curriculum and activities.³⁷ As it shaped its Justice Development Goals in 2024, the Action Committee also referenced the many “concrete and innovative initiatives” for the 68% of students surveyed who said that “exposure to A2J issues during their time at law school[...]influenced their career plans.”³⁸

However, despite these important advances, the Action Committee echoed the CBA’s earlier findings, concluding that “[t]he introduction of A2J in law schools [...] is not uniform across institutions” and remains piecemeal, often depending on the subject matter of a course or the interests of individual professors.³⁹ Scholars have made similar observations in the United States. In 2014, Rhode noted that A2J was “missing or marginal in the traditional core curriculum” and that clinical opportunities, although valuable, were not available to all students.⁴⁰ More broadly, Rhode argued that legal education “does little to prepare practitioners to address structural problems in the delivery of legal services and the administration of justice,” unlike medical schools which have “well-developed [curricula] devoted to public health”.⁴¹

<https://digitalcommons.osgoode.yorku.ca/cgi/viewcontent.cgi?article=1058&context=cfcj>>. The organization is now called the Action Committee on Access to Justice.

³⁴ *Ibid* at 21.

³⁵ *Ibid* at 21-22.

³⁶ Action Committee, *A2J & Legal Education*, *supra* note 26 at 4. The Action Committee’s 2023 Summer Research Project on A2J surveyed 93 law students, 42 young legal professionals, and 21 legal educators to gather insights on A2J in legal education (at 5-7).

³⁷ *Ibid* at 4.

³⁸ Action Committee on Access to Justice in Civil and Family Matters, *Justice Development Goals—A Decade of Progress: Trends Report* (2024) at 16, online (pdf): <<https://ajrn.org/wp-content/uploads/2025/07/928d9-jdgreport2024.pdf>> [Action Committee, 2024 *Trends Report*].

³⁹ Action Committee, *A2J & Legal Education*, *supra* note 26 at 4.

⁴⁰ Deborah L. Rhode, “Access to Justice: A Roadmap for Reform” (2014) 41:4 *Fordham Urban LJ* 1227 at 1254.

⁴¹ Deborah L. Rhode, “Access to Justice: An Agenda for Legal Education and Research” (2013) 62:4 *JL Education* 531 at 545 [Rhode, “Agenda”]. New initiatives are being developed in the United States, but gaps remain. For one such initiative, see Emily S. Taylor Poppe, *Access to Justice: An Introduction* (West Academic, 2025).

2. The Importance of A2J Education

In response to these concerning observations, several scholars advocate for A2J to occupy a more prominent place in legal education. They advance four main rationales: (i) A2J education socializes students and nurtures their commitment to A2J; (ii) it enhances the social value of legal education by showing it can serve public interests; (iii) it enhances the quality of legal education; and (iv) it contributes directly to A2J by enabling students to provide legal services to the public.

i. Socializing Students and Nurturing their Commitment to A2J

First, A2J education plays a crucial role in shaping students' professional identities and fostering a long-term commitment to A2J. Rhode and Brescia argue that legal education socializes the next generation of lawyers, judges, and policymakers by shaping their “understanding of the role of the legal profession in society.”⁴² Therefore, law schools have a unique opportunity and responsibility to make A2J an educational priority to “impart to students [...] a greater understanding of [...] the importance of closing the justice gap.”⁴³ Similarly, Bloch contends that clinical legal education can instill a strong sense of professional responsibility, inspiring future lawyers “to practice in a professionally and socially responsible way.”⁴⁴ More broadly, authors argue that exposing students to A2J issues, including through clinical education, can lead to career choices that prioritize pro bono and public interest work,⁴⁵ and sustained engagement with A2J throughout their professional lives.⁴⁶

ii. Broader Societal Value

Second, A2J education can enhance the value of both legal education and the legal profession for society. Responding to a “crisis in [American] legal education, and in the legal profession more generally”, with questions arising around their social value, Brescia argues that teaching A2J enables law schools to demonstrate that legal education and the legal profession offer

⁴² Raymond H. Brescia, “When Interests Converge: An Access-to-Justice Mission for Law Schools” (2017) 24:2 *Georgetown J Poverty L & Pol’y* 205 at 236; see also Deborah L. Rhode, *Access to Justice* (Oxford: Oxford University Press, 2004) at 193.

⁴³ *Ibid.*

⁴⁴ Frank S. Bloch, “Access to Justice and the Global Clinical Movement” (2008) 28 *Wash UJL & Pol’y* 111 at 130.

⁴⁵ See Donald Nicolson, “‘Our Roots Began in (South) Africa’: Modelling Law Clinics to Maximise Social Justice Ends” (2016) 23:3 *Int’l J Clinical Leg Educ* 87 at 92 [Nicolson, “Roots”]; Jonel Newman & Donald Nicolson, “A Tale of Two Clinics: Similarities and Differences in Evidence of the Clinic Effect on the Development of Law Students’ Ethical and Altruistic Professional Identities” (2017) 35 *Buffalo Pub Interest LJ* 1 at 94–95; see also Action Committee, *2024 Trends Report*, *supra* note 38 at 16.

⁴⁶ See Cynthia F. Adcock, “Beyond Externships and Clinics: Integrating Access to Justice Education into the Curriculum” (2013) 62:4 *JL Education* 566 at 574.

“other, less tangible, more fundamental values” beyond graduates’ earning potential.⁴⁷ Bloch contends that A2J education, particularly through some clinical opportunities, can generate social value by involving students directly in “law reform aimed at making legal systems and laws more responsive to the needs of society”.⁴⁸ From this perspective, teaching A2J benefits not only individual students but also the legal profession and society more broadly by reinforcing the law’s public-serving role and promoting reform.

iii. Better Legal Teaching

A third rationale, advanced by Nicolson, is that A2J teaching enhances legal education for students by giving them a more realistic and complete understanding of substantive law.⁴⁹ In the British context, for instance, he argues that teaching employment law without discussing access barriers presents students with a misleading picture of how the legal system operates.⁵⁰ This disconnect is particularly salient in “areas of law dominated by case law [that] tend to reflect the interests of those who can access the courts”.⁵¹ From this perspective, integrating A2J into legal education is essential to teaching substantive law in a realistic and informed manner.

iv. Direct Contribution to A2J

A fourth rationale identified in the literature is that A2J education directly improves A2J when delivered through clinical legal education. Scholars note that clinical opportunities enable students to provide legal services under supervision and thus serve the needs of underserved populations.⁵² While students’ contributions may be more limited than other services, such as full legal representation, they still expand the pool of legal services aimed at mitigating the A2J crisis.

3. How to Teach A2J

If we accept that A2J education is important for the reasons above, one question remains: *how* should A2J be integrated into the law school curriculum? A body of literature, primarily from the United States, helps answer that question by assessing specific A2J initiatives at individual

⁴⁷ Brescia, *supra* note 42 at 241.

⁴⁸ Bloch, *supra* note 44 at 128.

⁴⁹ Donald Nicolson, “Legal Education, Ethics and Access to Justice: Forging Warriors for Justice in a Neo-Liberal World” (2015) 22:1 Intl J Legal Profession 51 at 55 [Nicolson, “Warriors”].

⁵⁰ *Ibid* at 55.

⁵¹ *Ibid*.

⁵² See Bloch, *supra* note 44 at 112; Nicolson, “Roots”, *supra* note 45 at 87, 92.

institutions.⁵³ These studies explore the potential of curriculum-based courses, clinical legal education, and broader pedagogical methods for enhancing A2J education.

i. Teaching A2J Across the Law School Curriculum

First, scholars have advocated integrating A2J into the law school core curriculum.⁵⁴ Rhode recommends creating at least one substantive A2J course and incorporating A2J topics into mandatory courses such as constitutional, criminal, and property law.⁵⁵ Young similarly proposes embedding A2J education within the curriculum's "backbone," for example through new required courses, including design labs focused on solving A2J problems.⁵⁶ Canadian reports have also recommended creating dedicated A2J courses and integrating A2J issues across existing courses.⁵⁷

Adcock justifies this curricular approach by arguing that other initiatives, such as involving students in *pro bono* service, are insufficient on their own to produce graduates committed to addressing A2J challenges; instead, courses and *pro bono* experiences can reinforce each other when connected, more effectively fostering students' commitment to A2J.⁵⁸ Farrow, discussing educational opportunities around ADR mechanisms, supports a similarly comprehensive approach, recommending mandatory courses, integrating dispute resolution issues into core courses, offering optional upper-year courses, providing voluntary clinical or placement opportunities, and developing graduate programs and dedicated research initiatives.⁵⁹

ii. Teaching A2J through Clinical Education

Scholars have also assessed the value of teaching A2J through clinical education. Nicolson emphasizes that clinical education can encourage students to develop a long-term commitment to improving A2J after entering the profession.⁶⁰ Rhode commends the value of clinics for exposing

⁵³ See e.g. Suzanne J. Schmitz, "The Role of Law Schools in Improving Access to Justice: The Story of Law and the Family Mediation Program" (2003) 28 Southern Illinois ULJ 2001; Victor D. Quintanilla et al, "Experiential Education and Access-to-Justice within U.S. Law Schools: Designing and Evaluating an Access-to-Justice-Service Learning Program within the First-Year Curriculum" (2019) 7:1 Indiana JL & Soc Equality 88; Dale Margolin et al, "Empowerment, Innovation, and Service: Law School Programs Provide Access to justice and Instill a Commitment to Serve" (2010) 48:4 Fam Ct Rev 672.

⁵⁴ See e.g. Kathryn M. Young, "What the Access to Justice Crisis Means for Legal Education" (2021) 11:3 UC Irvine L Rev 811 at 848; Rhode, "Agenda", *supra* note 41 at 546.

⁵⁵ Rhode, "Agenda", *supra* note 41 at 546.

⁵⁶ Young, *supra* note 54 at 827, 848.

⁵⁷ Action Committee, *A2J & Legal Education*, *supra* note 26 at 4; CBA, *Reaching Equal Justice*, *supra* note 20 at 122; see also Nicolson, "Warriors", *supra* note 49 at 56-57.

⁵⁸ Adcock, *supra* note 46 at 574.

⁵⁹ Trevor C.W. Farrow, "Dispute Resolution, Access to Civil Justice and Legal Education" (2005) 42:3 Alta L Rev 741 at 791-796.

⁶⁰ Nicolson, "Warriors", *supra* note 49 at 59.

students to A2J issues, but argues that clinics cannot replace integrating A2J into the core curriculum, in part because “not all students take [clinical] courses” and because “even the best clinics rarely find time [and resources] to provide in-depth coverage of structural concerns”.⁶¹

Similarly, Drew and Morris argue that clinics, while valuable, are plagued with several issues, including the fact that they serve a dual purpose: educating students and addressing unmet legal needs, objectives that can conflict.⁶² Accordingly, they argue for enhanced integration of clinical and non-clinical education.⁶³ Aiken and Wizner likewise recognize the value of legal clinics but criticize their emphasis on “doing” rather than “teaching”.⁶⁴ They argue that clinical work should include instruction and critical reflection to help students better understand their clients’ lives and the social, economic, and political forces that shape them, thereby fostering a stronger commitment to social justice.⁶⁵ Overall, these authors highlight both the important contributions of clinical legal education to A2J teaching and its limitations as a standalone approach.

iii. Pedagogy of Teaching A2J

Finally, whether within courses, clinical opportunities, or other initiatives, the authors identify pedagogical tools that should be deployed to enhance A2J education.

Young argues that if lawyers are to develop the skills needed to address the A2J crisis, students should learn how non-lawyers interpret the law (legal consciousness) and the broader ecosystem of justiciable problems.⁶⁶ Students must better understand the role lawyers play in serving people and how they can partner with other actors in that ecosystem to address these issues.⁶⁷ Young further contends that achieving A2J goals requires producing stronger and more resilient lawyers by restructuring legal education to better support student mental health.⁶⁸

Leitch, building on Julie Macfarlane’s work, emphasizes the importance of direct encounters with self-represented litigants, arguing that such experiences are among the most transformative

⁶¹ Rhode, “Agenda”, *supra* note 41 at 546.

⁶² Margaret B. Drew & Andrew P. Morris, “Clinical Legal Education & Access to Justice: Conflicts, Interests, & Evolution” in Samuel Estreicher & Joy Radice, eds, *Beyond Elite Law: Access to Civil Justice in America* (New York: Cambridge University Press, 2016) 194 at 195.

⁶³ *Ibid.*

⁶⁴ Jane H. Aiken & Stephen Wizner, “Teaching and Doing: The Role of Law School Clinics in Enhancing Access to Justice” (2004) 73:3 Fordham L Rev 997 at 1003, 1010.

⁶⁵ *Ibid.*

⁶⁶ Young, *supra* note 54 at 822.

⁶⁷ *Ibid* at 831.

⁶⁸ *Ibid* at 839-850.

pedagogical tools for teaching A2J because they humanize an otherwise abstract crisis.⁶⁹ Similarly, Scherr, Grant, and Goldberg argue that direct encounters with injustice, whether through clinical opportunities or otherwise (for instance, in the context of a Public Interest Practicum), can foster students' understanding of A2J challenges.⁷⁰ They also identify important pedagogical approaches in clinical legal education. First, they emphasize autonomy, both students' ability to work directly on cases with clients and respecting clients as autonomous actors.⁷¹ They also emphasize the importance of collaborative relationships among students, community service providers, and clients.⁷²

Lastly, Castello advocates using narratives alongside traditional legal materials. By assigning stories, news clips, interviews, and books as required reading together with statutes and case law, students build empathy, engage in deeper learning, and challenge their assumptions about the law and its neutrality in its application to different populations.⁷³

Overall, the literature paints a picture of A2J education that is both concerning and encouraging. After more than a decade of calling for enhanced educational opportunities around A2J, it remains piecemeal and underdeveloped. However, significant student interest and the development of innovative, people-centred pedagogical methods provide fertile ground for a new era of A2J education.

II. Background on A2J Competencies in Canada

A2J educational pathways aim to help students develop A2J competencies. One objective of this project is precisely to assess how these competencies are currently understood and operationalized in Canada's legal education and regulatory landscape. To support that objective, this section provides important context on professional competencies more broadly.

More specifically, this section highlights some of the key efforts made to develop a standardized competency profile that comprises the knowledge, skills, and professional attributes required of legal professionals in today's Canadian justice ecosystem. Without pretending to be exhaustive, this section reviews efforts by (1) the Federation of Law Societies of Canada; (2) Jordan

⁶⁹ Jennifer Leitch & Dayna Cornwall, "Teaching Access to Justice: Some Early Initiatives" (21 April 2023), online: <<https://www.slaw.ca/2023/04/21/teaching-access-to-justice-some-early-initiatives/>>.

⁷⁰ Alex Scherr, Elizabeth M Grant & Graham Goldberg, "Towards a Jurisprudence (and Pedagogy) of Access: A Reflection on 25 Years of the Public Interest Practicum" (2018) 53:1 Georgia LR Online 1 at 19.

⁷¹ *Ibid* at 20-22.

⁷² *Ibid*.

⁷³ Rosa Castello, "Incorporating Social Justice into the Law School Curriculum with a Hybrid Doctrinal/Writing Course" (2017) 50:2 John Marshall LR at 224-229.

Furlong; and (3) the law societies in Western Canada to develop comprehensive competency frameworks. It also briefly reviews (4) the role of the Canadian Centre for Professional Legal Education in providing a structure for achieving these competencies as part of bar admission.

1. Federation of Law Societies of Canada National Requirement

The Federation of Law Societies of Canada (FLSC) is the national association of Canada's provincial and territorial regulators of the legal profession. In 2015, it created a National Requirement that “specifies the knowledge and skills that graduates of Canadian common law programs and internationally trained lawyers and law graduates must demonstrate to qualify for entry to bar admission programs in the Canadian common law jurisdictions”.⁷⁴ These standards aim to ensure that every law graduate entering the legal profession, regardless of where they trained, can demonstrate consistent foundational legal knowledge and skills required to practice law in Canada.

Currently, the 2018 National Requirement sets out three core competencies that law graduates and NCA candidates⁷⁵ must demonstrate:

- Skills Competencies;
- Ethics and Professionalism; and
- Substantive Legal Knowledge.⁷⁶

Law schools must ensure that course content covers the above-listed competencies at the substantive law and foundational skills levels. The National Requirement offers some detail on the skills that graduates and candidates must possess but provides no specific guidance on how to acquire these competencies.

In 2024, the FLSC approved an amended National Requirement that will come into effect in January 2029.⁷⁷ The amendments directly respond to the Truth & Reconciliation Commission's Call to Action 28 with a new Truth and Reconciliation competency category that expands the overall requirements to include the following:

⁷⁴ Federation of Law Societies of Canada, “Approving Canadian Law School Programs” (last visited 17 August 2026) online: <<https://flsc.ca/what-we-do/canadian-law-school-programs/>>.

⁷⁵ An “NCA” candidate is a person who applies to the FLSC's National Committee on Accreditation (NCA) for approval to enter a Canadian law society bar admissions program based on their legal education and professional experience obtained outside of Canada or in a Canadian civil law program. For more information, see FLSC, “National Committee on Accreditation”, online: <<https://nca.legal/>>.

⁷⁶ FLSC, “National Requirement” (1 January 2018), online (pdf): <<https://flsc.ca/wp-content/uploads/2024/04/National-Requirement-Jan-2018.pdf>>.

⁷⁷ FLSC, “Call to Action 28 and the National Requirement”, online: <<https://flsc.ca/what-we-do/responding-to-the-calls-to-action-of-the-truth-and-reconciliation-commission/>>.

- Indigenous legal theories and methodologies;
- Context and history of colonialism, including the history and legacy of residential schools; and
- Education on the UN *Declaration on the Rights of Indigenous Peoples*, Aboriginal-Crown relations, European concepts used to establish sovereignty over Indigenous lands and peoples, and systemic discrimination against Indigenous women, girls, and 2SLGBTQIA people.⁷⁸

The new requirement also prioritizes interactive online learning, experiential learning opportunities (e.g. simulations of practical skills, moot court, clinics, and Indigenous law camps), collaboration and teamwork, and a 3-credit course requirement in ethics and professionalism.⁷⁹

2. Jordan Furlong Report (2022)

In 2022, Legal Sector Analyst Jordan Furlong delivered a report to the Lawyer Development Task Force of the Law Society of BC that proposed a competency-based framework for its lawyer licensing program.⁸⁰ The Furlong Report explored how the LSBC could implement a Competency Framework aligned with the existing FLSC national accreditation standards (above)⁸¹ to ensure that licensing candidates:

- know the required entry-level lawyer competencies;
- can acquire those competencies in a fair and accessible manner; and
- can demonstrate their ability to perform those competencies.⁸²

Recognizing the practical limitations on legal regulators in determining the substance of law school education, Furlong argued that the Competency Framework must integrate key knowledge, skills, and professional abilities missing from the degree curriculum. Furlong noted that “[e]ntry-level, “Day One” lawyers should be able to carry out certain tasks and perform certain roles to a certain level of achievement” derived from their knowledge and training.⁸³

Furlong identified four lawyer competency categories: 1) knowledge of the law, 2) understanding of a lawyer’s professional responsibilities, 3) lawyer skills, and 4) professional

⁷⁸ FLSC, “National Requirement” (12 March 2024) at 4-5, online (pdf): <<https://flsc.ca/wp-content/uploads/2024/04/NRR-approved-on-March-12-2024-ENG-1.pdf>>.

⁷⁹ *Ibid* at 2, 6.

⁸⁰ Furlong Report, *supra* note 4.

⁸¹ *Ibid* at 9.

⁸² *Ibid* at 5.

⁸³ *Ibid* at 19.

skills.⁸⁴ Each category lists corresponding entries that are linked to the overarching demand for effective and meaningful legal services. Competence is shown through observable performance rather than simply assumed by completing a law degree or articles. Key knowledge and skills points include the ability to work and communicate effectively with clients, engage in client-centred problem solving, and uphold the ethical and professional standards expected of a licensed legal professional.

Furlong's report identifies A2J as an emerging, important, and systemic professional issue.⁸⁵ Furlong notes the discourse among legal professionals about whether the lawyer's duties encompass "an ethical obligation to enhance access to justice".⁸⁶ He recommends that new lawyer candidates should be informed of the A2J crisis, perhaps through a 'Professional Awareness Program'.⁸⁷

3. Western Canada Competency Profile / Competencies for Entry to Legal Practice (2024 – ...)

In 2024, the law societies of British Columbia, Alberta, Manitoba and Saskatchewan developed the *Western Canada Competency Profile (WCCP)*⁸⁸ which, in late August 2026, was renamed the *Competencies for Entry to Legal Practice (CELP)*.⁸⁹ The *WCCP* sets out 25 competencies across the following seven competency domains:

- Ethics and Professional Responsibilities
- Communication
- Truth and Reconciliation
- Professional Relationship Management
- Critical Thinking and Analysis
- Advice and Advocacy
- Practice Management and Well-being⁹⁰

⁸⁴ *Ibid* at 30-1.

⁸⁵ *Ibid* at 51-3.

⁸⁶ *Ibid* at 51.

⁸⁷ *Ibid* at 53.

⁸⁸ Law Society of British Columbia, *Western Canada Competency Profile: Competencies for Entry to Legal Practice* (Vancouver: 2024), online (pdf): <<https://www.lawsociety.bc.ca/getContentAsset/9320a259-af47-4fe0-bdea-d2a7a17ec7f8/dfc3d011-8f63-43f6-9ed8-4b444333a1d0/WesternCanadaCompetencyProfile.pdf?language=en-CA>>.

⁸⁹ See Law Society of Alberta, "Western Canada Competency Profile Renamed and Updated" (27 August 2026), online, <<https://www.lawsociety.ab.ca/western-canada-competency-profile-renamed-and-updated/>>. Because the formal document available online as of the date of this report continues to be named the *WCCP*, we continue to refer to it as such.

⁹⁰ *WCCP*, *ibid* at 3.

Each domain includes a set of performance indicators (86 in total) that explain how new lawyers can demonstrate their knowledge, skill, and ability to perform each corresponding competency.

The goal of the *WCCP* is to offer a standard performance matrix that can be applied across participating jurisdictions.⁹¹ The *WCCP* framework aims to enhance existing bar admissions programs by offering a guidepost to assess where competency categories already exist, identify gaps, and modify training to support new lawyers transitioning into legal practice. The *WCCP* can also help principals who supervise new lawyers to ensure that they can support and assess experiential learning opportunities that build the requisite skills to meet each competency.⁹²

4. Canadian Centre for Professional Legal Education (CPLED)

Founded in 2004, the Canadian Centre for Professional Legal Education (CPLED) is a non-profit that delivers competency-based professional legal education, training, and services for licensing candidates.⁹³ As of September 2026, six participating law societies across Canada use CPLED's Practice Readiness Education Program (PREP) as their official bar admission training for licensing purposes.⁹⁴ The PREP is built on "best practices to deliver practical skills and competencies in a consistent, integrated approach that combines interactive, transactional learning and simulation" activities for students.⁹⁵ It provides a structure for graduates to acquire the relevant competencies before starting their legal practice.

III. Approaches to A2J

Beyond the literature and efforts around A2J competencies and educational pathways, this project is also anchored by the notion of A2J itself. This section provides some background on that notion and on the different perspectives that shape the project.

⁹¹ To date, the law societies of BC, Alberta, Manitoba, Saskatchewan and Nova Scotia have formally approved and adopted the *WCCP*. In October 2025, CPLED formally adopted the *WCCP*. As of May 2026, CPLED has begun to align the PREP curriculum with the *WCCP* framework. For more information, see e.g. Law Society of British Columbia, "Western Canada Competency Profile" (last visited 17 August 2026), online: <<https://www.lawsociety.bc.ca/about-us/priorities/lawyer-development/western-canada-competency-profile/>>; CPLED, "'Competency Framework'" (last visited 17 August 2026), online: <<https://cpled.ca/our-programs/practice-readiness-education-program-prep/competency-framework/>>.

⁹² Law Society of BC, "Western Canada Competency Profile", *ibid*.

⁹³ CPLED, "About Us" (last visited 16 August 2026), online: <<https://cpled.ca/about-cpled/>>.

⁹⁴ Alberta, Manitoba, Nova Scotia, Saskatchewan, Nunavut, and British Columbia: see *ibid*.

⁹⁵ *Ibid*.

Access to justice, and the educational pathways that equip new lawyers to advance its aims, cannot be defined within the four walls of a classroom. Rather, A2J pathways reflect, and are shaped, by the interactions, impacts, or results of a justice seeker's attempts to address their legal problems. For some people, access hinges on language, family status, culture, traditions, or geographic and socioeconomic (dis)placement. For others, access is shaped by visible or invisible disability, age, sexual orientation, immigration status, or historic and systemic colonialism and discrimination. As Farrow aptly stated, access is about the justice seeker, not the academics, lawyers, judges, or government policymakers.⁹⁶ While they all play an important role in facilitating A2J, it is the people who must navigate the justice labyrinth without a map that “need[s] to be at the centre of how we think about, understand, and reform the system”.⁹⁷ The notion of “access” is therefore contextual, diverse, and moulded by the identity(ies) and lived experiences of the justice seeker.

Below we summarize some key approaches to A2J that informed our review, including people-centred justice (1); Indigenous conceptions (2); and other community perspectives (3).

1. People-centred Justice

i. *Organisation for Economic Co-operation and Development (2021)*

In 2021, the Organisation for Economic Co-operation and Development (OECD) defined a people-centred justice system as one that aims to understand and meet “the legal and justice needs of all people as they experience them, whether or not they recognise those needs as having a legal dimension; and on generating fair outcomes and opportunities to contribute to the overall health and well-being of society, inclusive growth, and the quality of democratic governance.”⁹⁸ With this guidance acting as our roadmap, the justice seeker takes centre stage across the pillars of the justice system. The OECD's Four Pillars of People-centred Justice framework appears in Appendix A.

ii. *People-Centred Justice and Dispute Resolution*

Applying the above framework to our inquiry of what people-centred justice looks like at the concrete, practical experience level is what Boulanger-Bonnelly set out to do in his study of *People-Centred Justice and Dispute Resolution*.⁹⁹ Working from the OECD framework, Boulanger-Bonnelly

⁹⁶ Farrow, “What is Access to Justice?”, *supra* note 2 at 961.

⁹⁷ *Ibid.*

⁹⁸ OECD, *Framework and Good Practice Principles for People-Centred Justice* (Paris, 2021) at 26, online: <https://www.oecd.org/en/publications/oecd-framework-and-good-practice-principles-for-people-centred-justice_cdc3bdc7-en/full-report.html>.

⁹⁹ Jérémy Boulanger-Bonnelly, “Person-Centred Justice and Dispute Resolution: The Potential of Lay Courts” (2024) 39:3 CJLS 404.

distills six recurring themes tied to the four pillars that offer a clear and tangible picture of what people-centred justice can accomplish in practice:

- **Theme 1: Evidence**—services designed from core data about people’s actual legal needs and experiences.
- **Theme 2: Accessibility**—a wide range of accessible formal and informal services genuinely accessible.
- **Theme 3: Interdisciplinarity**—grounded in an understanding that legal problems intertwine with health, housing, and employment issues. People-centred services should address root causes holistically, together with non-legal service providers.
- **Theme 4: Flexibility**—people-centred approaches recognize that one-size-fits-all institutional responses do not work, and that services should be tailored to the varying needs of diverse groups.
- **Theme 5: Empowerment**—sustainability of a people-centred justice system depends upon building people’s legal capability and giving them a voice in the design and delivery of the services meant to help them.
- **Theme 6: Local and community-based**—community-based, local solutions are more accessible, flexible, sustainable, and trusted than centralized ones.¹⁰⁰

This theme-based approach highlights that people-centred justice reframes the starting point of A2J reform, from “what does the justice system provide?” to “what do people actually need, and how do they actually experience law in their lives?” This reframing is key when thinking about A2J education, the competencies needed for A2J lawyering, and the pathways for developing them.

2. Indigenous Perspectives on A2J

i. Truth & Reconciliation Commission Calls to Action and A2J Education

Any work on A2J, including A2J education, must account for the perspectives of Indigenous communities, drawn from their own worldviews and legal traditions. In 2015, the Truth & Reconciliation Commission issued 94 Calls to Action “to mobilize all levels of government, organizations, as well as individuals to make concrete changes in society”.¹⁰¹ The TRC report outlined clear A2J educational pathways that both law schools and legal regulators could pave for existing and future legal professionals about the A2J needs and experiences of Indigenous peoples and communities.

¹⁰⁰ *Ibid* at 428-434.

¹⁰¹ Truth and Reconciliation Commission of Canada, “Calls to Action” (Winnipeg, 2015), online (pdf): <https://ehprnh2mwo3.exactdn.com/wp-content/uploads/2021/01/Calls_to_Action_English2.pdf>.

Call to Action 27 prompted legal regulators to implement required cultural competency training for all lawyers, including skills-based learning in intercultural competency, conflict resolution, human rights, and anti-racism.¹⁰² The scope of training included the history and legacy of residential schools, Treaties and Aboriginal rights issues, Indigenous law, Aboriginal-Crown relations, and review of the *United Nations Declaration on the Rights of Indigenous Peoples*.¹⁰³

In 2020, the FLSC responded to Call to Action 27 with a formal recommendation to all provincial and territorial law societies that members should receive training to enhance their knowledge and understanding of Indigenous peoples and legal orders.¹⁰⁴ The FLSC called upon law societies to work in consultation with Indigenous peoples and organizations to develop training across a spectrum of resources, to build knowledge and skills.¹⁰⁵ Appendix B to this report summarizes the implementation of Call to Action 27 across Canadian legal regulators.

The TRC Report also issued Call to Action 28, prompting law schools to offer mandatory instruction of the same scope and breadth of content as Call to Action 27. Rather than developing this content as a single, standalone course, law schools were encouraged to position the knowledge and skill-building opportunities across the curriculum. A recent progress report of law faculty efforts across the country reflects “a fundamental shift in how law is taught, researched, and practiced”.¹⁰⁶ Results show a “deepened focus on Indigenous legal orders”, recognizing Indigenous law as a living system of justice.¹⁰⁷

ii. BC First Nations Justice Strategy

The BC First Nations Justice Strategy (BCFNJS) adopts an A2J lens that prioritizes working with First Nations communities to address poor justice outcomes.¹⁰⁸ Developed in 2020, and updated in 2024, the BCFNJS operates under four strategy pillars. The third pillar, “Roles, Responsibilities, and Capacities” guides competency building, education, and training for those who interact with Indigenous justice seekers, including police and Crown counsel.¹⁰⁹ The strategy highlights the pressing need for a consistent and coherent education and trauma-informed training model that responds to issues of cultural safety, the history and impacts of colonization, and the role

¹⁰² *Ibid* at 3.

¹⁰³ *Ibid*.

¹⁰⁴ FLSC, *Report of the Truth and Reconciliation Calls to Action Advisory Committee* (June 2020) at 9, online (pdf): <<https://flsc.ca/wp-content/uploads/2020/08/Advisory-Committee-Report-2020.pdf>>.

¹⁰⁵ *Ibid* at 10. For a summary of implementation status across jurisdictions, consult Appendix B.

¹⁰⁶ Council of Canadian Law Deans, *2026 Report on Canadian law schools responses to TRC Calls to Action*, online: <<https://cclcd-cdfdc.ca/reports-and-archived-materials/>>.

¹⁰⁷ *Ibid*.

¹⁰⁸ BC First Nations Justice Council, *BC First Nations Justice Strategy 2024*, online (pdf): <<https://bcfnjc.com/wp-content/uploads/2024/04/The-BC-First-Nations-Justice-Council-Justice-Strategy-2024.pdf>>.

¹⁰⁹ *Ibid* at 40.

that legal professionals and justice actors hold to advance reconciliation and foster Indigenous wellbeing.¹¹⁰

3. A2J and Community Experiences

People-centred justice aims to redesign the justice system around real people's needs. This exercise requires examining whose needs the justice system has historically ignored. Professor Backhouse explores A2J through the lens of immigration, racialization, and the racial exclusion that impacted the A2J experiences of BPOC communities.

Backhouse begins by referencing earlier work from Roderick Macdonald that found that the typical plaintiff in Quebec's small claims court looked "much like [him]: white, male, non-immigrant, English or French speaking, professional, well-educated."¹¹¹ Even a court built for accessibility ended up serving the people who already had the most power in society. Backhouse shows that today's inequities in the justice system are not random. Rather, they are the direct legacy of centuries of discriminatory law.¹¹²

Backhouse connects this history directly to present-day A2J. Communities historically excluded from voting, from the legal profession, and from the judiciary remain statistically underrepresented in all three.¹¹³ This gross underrepresentation matters, she argues, because politicians, lawyers, and judges with little personal experience of racism are less likely to fully understand the realities of those who face it daily.¹¹⁴

The result, Backhouse argues, is a justice system that many racialized communities do not trust and, consequently, underuse even when they have a strong legal claim. This outcome reflects a profound A2J problem that procedural fine-tuning cannot fix on its own; it requires reckoning with history itself. Thus, when we think about A2J education from the BPOC community lens, we must consider how the impact of historical injustices affects BPOC perceptions of A2J today.

¹¹⁰ *Ibid* at 41.

¹¹¹ Roderick A Macdonald, "Access to Justice in Canada Today: Scope, Scale and Ambitions" in Julia H Bass, WA Bogart & Frederick H Zemans, eds, *Access to Justice for a New Century: The Way Forward* (Toronto: Law Society of Upper Canada, 2005) 19, cited in Constance Backhouse, "What Is Access to Justice?" in Julia H Bass, WA Bogart & Frederick H Zemans, eds, *Access to Justice for a New Century: The Way Forward* (Toronto: Law Society of Upper Canada, 2005) 113 at 113.

¹¹² Backhouse catalogues examples that include Chinese head taxes and decades of exclusion laws targeting Chinese immigrants; Immigration laws designed to keep out Black and South Asian immigrants; and judges who, well into the twentieth century, openly described racialized communities using overtly racist language from the bench, *ibid* at 114-115.

¹¹³ *Ibid* at 120-121.

¹¹⁴ *Ibid* at 122-123.

The intersection of gender, disability, and sexual identity compounds issues of historical exclusion. As Vipond and Cloutier de Repentigny note, A2J is not a fixed, finite target. Drawing on Galanter, they describe A2J as a “moving frontier”.¹¹⁵ As society changes, previously unrecognized injustices emerge, including those against populations like trans people, who were until recently largely invisible in the A2J literature.¹¹⁶ For Galanter, A2J becomes “the negation or correction of injustice” as the A2J frontier moves as new injustices come into view.¹¹⁷

According to a 2018 legal needs study, 71 percent of trans people surveyed in Ontario had experienced at least one legal problem in the previous three years, whereas roughly half of Canadians will experience a serious legal problem over a similar period.¹¹⁸ Trans Ontarians thus face legal problems at a substantially higher rate than the general population, with one kind of problem often compounded by another, which can cascade into criminalization and further legal difficulty. Vipond and Cloutier de Repentigny leveraged this scale to reveal the following four A2J barrier clusters for trans and gender non-conforming people and communities:

- **Socio-economic inequalities:** Trans people face disproportionate employment discrimination, poverty, and housing precarity, barriers that exist well outside the legal system itself, but that shape, often decisively, whether someone can afford a lawyer, take time off work to attend a hearing, or absorb the cost of a legal problem at all.
- **Exclusion from and underrepresentation within the legal system:** There are very few openly trans lawyers, judges, or policy-makers. Most legal training does not address trans people’s realities, which means the system is often designed, quite literally, without trans people in the room.
- **Sex/gender certification and “bigenderism”:** Many Canadian identity documents (birth certificates, driver’s licences) still rely on a binary “sex” marker. Changing that marker, or a legal name, is itself a bureaucratic, often costly and medicalized process: a procedural barrier layered directly on top of an identity issue. The same binary assumption shapes decisions far beyond paperwork, including where a trans person is placed in a correctional facility.

¹¹⁵ Evan Vipond & Pierre Cloutier de Repentigny, “Searching for Justice: Moving Towards a Trans Inclusive Model of Access to Justice in Canada” (2024) 47:1 Dalhousie LJ 231 at 235.

¹¹⁶ *Ibid* at 236.

¹¹⁷ *Ibid*.

¹¹⁸ TRANSforming JUSTICE, *Trans Legal Needs Assessment Ontario Summary Report One: Legal Problems Facing Trans People in Ontario* (2018) at 2, online (pdf): <<https://www.halco.org/wp-content/uploads/2020/05/TransForming-Justice-Report-One-2018Sept-EN-updated-May-6-20201.pdf>>. Legal problems and serious legal problems are not commensurable, so these numbers must be taken with a grain of salt, but the comparison nonetheless suggests that trans communities face a significant number of legal problems.

- **Transphobia and cissexism within the legal system:** Beyond formal rules, the authors point to how trans people are treated by police, court staff, and correctional officers: hostility, disbelief, or misgendering that can occur regardless of what the written procedure says.¹¹⁹

From the above barrier classification, Vipond and Cloutier de Repentigny propose three aspects of A2J to consider:

- **Procedural justice** — the fairness of the process, and how easy it is for a trans claimant to understand and navigate the system. E.g. binary intake forms and costly, medicalized name-change procedures reflect procedural barriers in this sense.
- **Substantive justice** — whether a trans claimant with a valid claim obtains an outcome that resolves the underlying problem. E.g. a human rights tribunal that finds discrimination occurred, but that orders a remedy too weak to change anything, is a substantive failure, even if grounded in a fair process.
- **Symbolic justice** — the trans community's broader disenfranchisement from the legal system, the state, and society, including whether the system recognizes and respects trans identities, and whether trans people can trust the system to welcome their claims. E.g. hostile treatment by police or court staff, even where no formal rule is broken, is a symbolic harm. So is using a trans person's deadname – i.e. the name they used before their transition.

The dimension of symbolic justice ties to Backhouse's earlier point about communities that will not use a system that they cannot trust. In this way, a symbolic justice problem becomes a substantive one. Lastly, the authors are careful to stress that trans people do not experience A2J barriers uniformly. Drawing on Crenshaw's concept of intersectionality, a trans person who is also Indigenous, racialized, disabled, or living in poverty faces compounded and distinct forms of marginalization, which is why A2J for trans people "cannot be achieved independently of A2J for all."¹²⁰

The different approaches to A2J shared above are key for this project because, under a people-centred lens, they shape what A2J looks like, the competencies A2J lawyers should develop, and the pathways through which to develop them.

¹¹⁹ Vipond & Cloutier de Repentigny, *supra* note 115 at 240-256.

¹²⁰ *Ibid* at 238-239.

◆ PART 2: METHODOLOGY

This part of the report describes the method we used to document and analyze A2J competencies and pathways. After providing (I) the definition of “access to justice” we used to guide our data collection, we explain (II) the scope and limitations of our research, (III) our data collection methods, and (IV) the consultations we conducted to validate our pathways data.

I. Defining A2J for the Project

To manage the project’s aims, and based on the various perspectives mentioned earlier in this report, the team set out to establish a workable definition of A2J to guide the research and analysis. Defining A2J draws contextually from the justice seeker’s experiences at the individual and community levels. A2J involves substantive, procedural, and symbolic representations of what justice means for each person. While it is therefore impossible to reach one single definition of A2J, it was necessary to use one to guide our inquiry.

The project team begins from the understanding that A2J is an evolving, people-centred concept of justice that seeks better outcomes for those served by the justice system. The team recognizes that “access” (to justice) depends as much on a person’s experience with the justice system and its actors as it does on the physical access a person may, or may not, have to legal information and services. Mapping A2J educational pathways, and establishing an A2J competency inventory, requires applying a broad research lens that appreciates how A2J shows up in experiential, procedural, and substantive ways and for different justice seekers.

This means that A2J educational pathways may appear in courses and activities that engage with the procedural issues and law of access to legal processes and services (e.g. dispute resolution, civil procedure, etc.). Or they may show up in courses and activities that engage with doctrinal A2J concepts, including associated ones like restorative or social justice, equity and diversity, human rights, etc. Predominantly, they feature in the clinical and experiential learning opportunities where students actively engage and work with justice seekers to resolve their everyday legal problems. Consequently, our data collection was broad and was not limited to competencies or pathways which specifically referred to “access to justice”.

II. Research Scope and Limitations

1. Professional A2J Competencies—Scope

The WCCP served as our starting point for identifying A2J competencies. The project also examined provincial and territorial law society/legal regulator resources to better understand how competencies are defined and expectations around education, training, practice standards, etc. We limited our extra-jurisdictional review to select Commonwealth jurisdictions to draw parallels and highlight opportunities to fill competency gaps not yet considered in Canada.

2. A2J Educational Pathways—Scope

Identifying A2J educational pathways required a structured, online comparative research and data-gathering approach to examine all 24 national law school curricula, clinical or experiential learning programs, and related student- or faculty-led A2J initiatives. The project team also reviewed discrete law-adjacent faculty courses and/or clinical programs for A2J-related content or training overlap. The project team relied on publicly available information from faculty and clinic websites, reviewing various institutional content headings.¹²¹

3. Research Limitations

Two overarching challenges shaped the research scope, data collection, and findings. First, there is no central definition of A2J, as addressed above. Second, law faculties do not always explicitly identify A2J in course descriptions. Research and consultations for the project suggest that A2J concepts, principles, and practices are embedded at various points throughout the legal education journey. Additional research limitations are briefly set out below.

i. The Umbrella of “A2J” in Legal Education

A broad A2J lens reduced the risk of excluding relevant courses or activities where A2J is not expressly identified, but also presented a concurrent challenge in defining the research scope to avoid omitting courses or activities that incorporate *some* element of A2J. For example, many faculty work with A2J considerations in all their courses, including those that do not portray an obvious connection to A2J (e.g. torts). Where a deeper review could not occur, the project team objectively assessed whether to capture the course using available descriptions, objectives, and materials.

¹²¹ A complete list of institutional content headings appears in Appendix C.

ii. *Reading between the Lines*

Research relied on publicly available information from law faculty websites. Since no two websites are created equal, the project team applied several search strategies to capture content. The breadth and depth of data varied. Some faculties share detailed course descriptions, objectives, learning outcomes, and assessment methods. Others provide limited course content or titles only.

The project team adopted a ‘reading between the lines’ approach to unveil the invisible A2J curriculum among the courses reviewed. Differences in available information limited comparability and increased the risk of misclassifying courses whose public descriptions did not expressly identify A2J content. Similar gaps arose for clinical and experiential data, where details may only be communicated to registered students. Access to course syllabi and assessment materials would better indicate the extent to which A2J appears within a course.

Lastly, the research timing also affected data availability. Initial reviews performed between February and April 2026 preceded publication of many updated course calendars. Some information remained behind password-protected portals. Faculty consultations could not resolve all gaps.

iii. *The Silent Stakeholder: Missing Student Perspectives on A2J Education and Competencies*

The project scope and timeframe did not permit direct consultation with current law students. The findings do not reflect student perspectives on how they receive A2J knowledge and skills training. They reflect only institutional and faculty perspectives alongside the project team’s review and analysis. To address this, the project team reviewed data from the 2023 *A2J & Legal Education Report* mentioned earlier.¹²² That report revealed some important pathway insights into student A2J educational experiences:

- **Guest Lectures** and **volunteer opportunities** were the two most popular A2J initiatives for students.
- **Mandatory Courses** ranked third, followed by **clinical legal education**, for offering a direct A2J educational pathway.
- **Optional courses and law-school-wide A2J speaker series** fell in the mid-range for student engagement in A2J learning.¹²³

¹²² Action Committee, *A2J & Legal Education*, *supra* note 26 at 16.

¹²³ *Ibid.* Note that the results are based on the number of students that selected a given option. Students were also invited to select all options that applied.

The report does not identify the specific mandatory and optional courses informing student responses. Thus, it is unclear whether A2J featured primarily in a course, or as one component of a broader substantive law topic. The project cannot assess how visible, accessible, and meaningful existing A2J education pathways are from the student's perspective. The absence of this data also means that the project findings reflect what appear to be available, but not necessarily navigated, pathways. Course availability also does not reveal the 'what' and 'why' of student course selections, nor where there may be perceived (or actual) A2J knowledge and training gaps.

iv. **Cross-border Gaps**

International jurisdictions use different regulatory frameworks, competency terminology, and assessment methods. These characteristics limit direct comparison with Canadian data. Where possible, the project team applied a singular coding matrix and documented qualitative notes when a code could not be assigned. The review focused on national-level information and did not comprehensively review state or territory-level data. The team did not conduct consultation outreach on the regulatory research.

III. Data Collection and Analysis

1. Data Collection—Pathways

The project team used a systematic approach to collect the pathways information. Law faculty websites were searched using keywords tied directly, or indirectly, to A2J. A complete list of keywords appears in Appendix D.

2. Data Collection—Competencies

From February to April 2026, students conducted preliminary structured, online comparative research and data gathering from all national (provinces/territories) and select international (Commonwealth) law societies and legal regulators (or equivalent), to identify A2J competencies. Students were also asked to identify regulatory frameworks and competency-related initiatives or training content, where applicable. Consult Appendix E for a list of institutional content headings used to search for this information.

3. Qualitative and Quantitative Analysis

Between May and August 2026, the project team combined qualitative, theme-based analysis with quantitative descriptive analysis to examine how law schools structure A2J education pathways

across the curriculum, and how these pathways align with professional competencies required for people-centred lawyering. Foundational research identified several recurring themes in how Canadian law schools conceptualize and deliver A2J knowledge and skills training. Most law schools frame A2J education as a combined curriculum of A2J and social justice values with developing practical skills from a people-centred lens.

The qualitative analysis revealed the substance and character of the educational pathways and competencies. The quantitative analysis highlighted the prevalence, distribution, and concentration patterns. This hybrid approach to the data analysis enabled the project team to explain:

- where and how A2J is taught,
- learning objectives,
- how educational pathways correspond to the learning objectives,
- how student competencies are assessed,
- preliminary assumptions that shape the law school curriculum, and
- gaps that may be filled.

The qualitative review examined course titles and descriptions, learning objectives or outcomes, clinical and experiential activities, student and faculty-led initiatives, regulatory competencies, performance indicators, and assessments. The team focused on spotting recurring concepts and patterns to avoid restricting the findings to only those courses expressly labelled as an A2J course. The team relied on additional information including:

- Course type: doctrinal, experiential, or skills-based
- Integration of Indigenous Law and Legal Traditions, and the TRC Calls to Action
- Year of offering: first year (1L), upper year (2L, 3L, or 4L)
- Priority status: required (mandatory) or optional (elective)

The quantitative data scan isolated the number of courses or instances, credit values, classification categories and a coding matrix to quantify percentages, averages, distributions across data categories, frequency, and to generate comparisons, where possible.

IV. Project Consultation

Between April and July 2026, the project team contacted law professors and research directors at each law school to verify the A2J pathways information gathered. Using a qualitative

inquiry approach, the team sought to understand how A2J educational pathways are reflected in the selected courses and programs, and whether others should appear in the findings.

Each person was identified by the team for their demonstrated experience teaching and/or leading A2J courses, research, and other initiatives. They were sent an email invitation that explained the BC ACE A2J Education Initiative and asked them, voluntarily, to provide insights on the mapping pathways identified in the preliminary data scan captured by the project team. Participants were not expected to do any additional research or consultation and were given the option to defer the review to a different faculty member or Associate Dean, if needed. Faculty members with access to a current copy of the course catalogue or syllabi were invited to confidentially share that information in their response, where possible.

18 of the 24 law faculty contacts responded to the consultation request. Responses were gathered by email and saved to a password-protected SharePoint drive. Several faculty noted the ongoing challenge of defining A2J as both a substantive concept and practice skill. Participants shared different views on the scope of A2J education and training. They shared key information that allowed us to complete our findings, but we did not receive any additional syllabi or course materials. Consequently, the summaries and findings in this report are limited to the publicly available data gathered.

◆ PART 3: A2J COMPETENCIES

I. Introduction

This section presents our findings from the regulatory review and analysis of Canadian and select international competency frameworks. They reveal the knowledge and skills that tie to an A2J, people-centred practice, and respond to the following guiding questions:

- Which competencies do lawyers need to build an A2J, people-centred practice?
- How do legal regulators define and set expectations for education, training, and skill-building to meet these competencies in practice?
- What gaps and opportunities can this project fill?

This reference point provides a foundation for review of the A2J educational pathways that follow in Part 4 of the report.

II. Key Considerations

The project team examined individual competency descriptions and broader competency domains in Canada. The findings draw from publicly accessible information from regulatory websites. For the combined national and international review, and because the international data reflected some important limitations, the team focused on these additional data points:

- performance indicators;
- assessment categories and/or criteria;¹²⁴
- educational pathway and/or practice contexts.

The project team captured data on mandatory or optional competencies, where available. The team leveraged the international research to create additional competency codes to draw out other competencies from the Canadian content. Information on assessment categories or criteria varied and could not be easily segmented from standardized testing approaches (e.g. bar examinations). Specific competency domains were also inconsistently assigned within broader frameworks. In England and Wales, the project team's coding matrix could not be used to capture quantitative findings for similar reasons.

¹²⁴ Not every international jurisdiction provided mandatory or optional classifications, nor did they consistently provide clear data on assessment categories or criteria.

Individual regulator content often reflected several competency codes. As such, competency frequency findings may exceed the record totals when tallied. The analysis reports on how frequently a given competency appears, rather than assigning each record to only one category.

Lastly, gaps in information and analysis are linked to information that may be internal or accessible only to registered students of a bar admission program or members of a law society.

III. A2J Competencies in Canada: Key Findings

The Canadian regulatory landscape reflects national, multi-jurisdictional content across the 13 provincial and territorial law societies and the FLSC, and includes:

- articling and entry-to-practice requirements;
- the WCCP;
- the FLSC's National Requirement¹²⁵ and the *Model Code of Professional Conduct*,¹²⁶
- CPLED / PREP;
- continuing professional development requirements; and
- Truth & Reconciliation and specialized Indigenous legal education initiatives that respond to the Call to Action 27.

The FLSC's National Requirement sets out what common-law¹²⁷ graduates must know to enroll in a Canadian bar admission program. The *Model Code of Professional Conduct* defines a

¹²⁵ As stated in Part 1, the current National Requirement remains in effect until January 1, 2029. The amended National Requirement approved in 2024 will add important knowledge, skills, and training components that amplify lawyer competency in Indigenous laws and legal orders, Truth and Reconciliation, ethical and professional responsibility duties to Indigenous clients, peoples, and communities, curriculum content, and enhanced opportunities for teamwork and collaboration.

¹²⁶ FLSC, *Model Code of Professional Conduct* (as amended April 2024), online (pdf): <<https://flsc.ca/wp-content/uploads/2024/05/2024-Model-Code-of-Professional-Conduct-with-Changes-Marked.pdf>>. The FLSC offers an interactive copy of the Code so that users can match each rule to their respective law society: Interactive Model Code of Conduct, online: <<https://flsc.ca/what-we-do/model-code-of-professional-conduct/interactive-model-code-of-professional-conduct/>>.

¹²⁷ Government of Canada, Department of Justice, "Where our legal system comes from" (Ottawa: last modified 01 September 2021) online: <<https://www.justice.gc.ca/eng/csj-sjc/just/03.html>>. Canadian law operates within a colonial, bijural framework consisting of two legal traditions within the same overarching legal system. Common law stems from the Commonwealth legal tradition in England that relies on earlier court decisions as precedents to interpret and resolve later cases on similar matters. The common law adapts as social values change and as judges reflect new interpretations of legal doctrines. Civil law, used in Quebec, comes from the French legal tradition consisting of comprehensive written rules and principles found in the *Civil Code of Québec*, CQLR c CCQ-1991: *ibid.* Laws in Canada

“competent lawyer” as one who knows the applicable law and can apply their education, training, and professional attributes to appropriately address a client’s matter.¹²⁸ Competence includes understanding the law and related process, identifying issues, client goals and objectives, calculating risk, and weighing a recommended course of action.¹²⁹ Competence also reflects key practice skills like legal research, writing, dispute resolution, and effective communication.¹³⁰ Our project attempts to isolate, among these multiple competencies, which ones contribute to an A2J practice, and to analyze them.

The project team generated 436 coded competency records, which represent the data entries drawn from each competency framework that tie to the broad definition of A2J. This Canadian regulatory content supports a strong data review across all jurisdictions.

The coding amalgamates the WCCP’s 25 competencies across seven domain categories and is measured against 86 performance indicators. The team used a theme-based coding matrix to reflect overarching competency categories applicable at both the national and international levels. These themes helped to avoid duplicating the WCCP’s competency outline while capturing those that required a separate record in the report data (e.g. technology, trauma-informed lawyering, well-being, etc.). This approach also helped to identify instances where competencies appearing at the international comparative level were reflected (but perhaps not specified) in the Canadian regulatory landscape.

1. Competency Frequency

The first data measure is a frequency profile that reflects how often different themes arise within A2J-related regulatory competencies. This profile highlights the competencies that receive the greatest emphasis in the data, and opportunities to enhance exposure to achieve a comprehensive A2J competency framework. Applying the project’s competency coding matrix, the following frequency profile emerged:

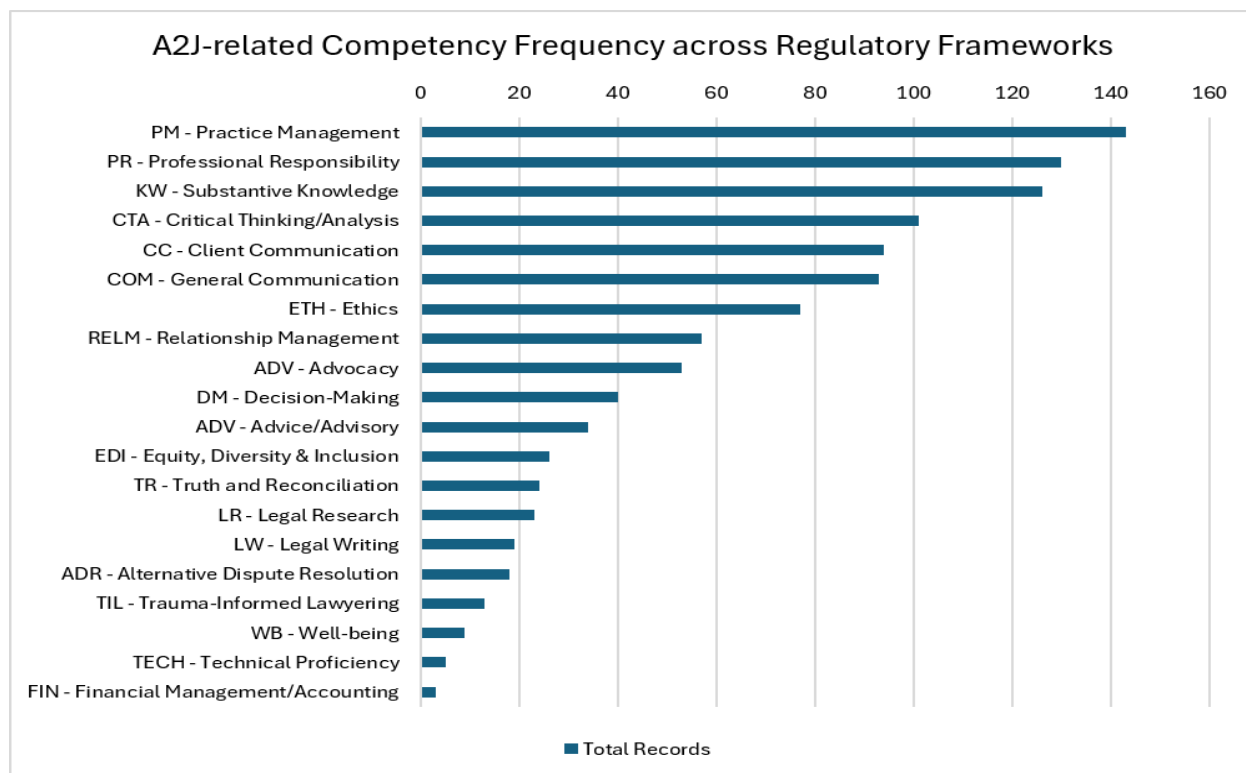
also recognize federal rules, other sources of law and, more importantly, other legal traditions including Indigenous legal traditions, laws, and legal orders and systems. For more information, see e.g. Government of Canada, “The Fundamentals of Bijuralism” (Ottawa: last modified 10 June 2024) online: <https://www.justice.gc.ca/eng/csi-sjc/harmonization/services_information/fundamentals-fondements.html>.

¹²⁸ FLSC, *Model Code of Professional Conduct*, *supra* note 126 at s 3.1-1.

¹²⁹ *Ibid.*

¹³⁰ *Ibid.*

Figure 1.0 Competency Frequency (Canada)



Note: n = 436 coded regulatory records. Each record may contain more than one category. Frequency represents how many times coded competencies appear across all regulatory records.

The frequency distribution noted above highlights the following themes:

- practice management;
- professional responsibility;
- substantive knowledge;
- critical thinking and analysis;
- communication (client and general); and
- ethics.

Less frequently coded categories (below 20 appearances¹³¹) include ADR (18 records; 4.1%), trauma-informed lawyering (13 records; 3%), well-being (9 records; 2.1%), and financial

¹³¹ The term “appearances” is used in this report to illustrate how often A2J-related content or other data appears across a dataset.

management (less than 1%). The low frequency data does not mean that regulators consider them unimportant. Rather, it may suggest that less emphasis is placed on these competencies in the regulatory content, or that some categories are unclear or subsumed under other competencies (e.g. technological competence as contained within legal research).

2. Regional Differences

Regional documented frameworks show differences among legal regulators over how a jurisdiction may emphasize or focus on a given competency domain or category, when A2J-related competencies are considered.

Western Canada provinces (Alberta, British Columbia, Saskatchewan, and Manitoba) emphasize advice/communication/relationship management (51.4%), and ethics and professional responsibility (48.6%) within the competency hierarchy.

Ontario places substantive legal knowledge and problem solving at the top (63.8%), followed by advice/communication/relationship management (53.2%), and practice management/tech/finance (47%). The Law Society of Ontario plans to modernize its lawyer licensing candidate assessment process.¹³² The changes will respond to two key gaps identified by the LSO in the existing licensing framework: 1) lack of consistent education and training on the necessary skills required of lawyers in practice; and 2) limits to learning requisite skills through standard, multiple-choice licensing exams.¹³³ The LSO reforms plan to capture content from the PREP and focus “on developing practical entry-level competencies which would include skills required by modern lawyers, such as practice management, communication, client relationship management and professional ethics.”¹³⁴

¹³² In September 2025, the Law Society of Ontario held consultations with lawyers, paralegals, affected stakeholders, and the public on a proposed plan to modernize the Law Society’s assessment of lawyer licensing. The Law Society’s Professional Development and Competence (PD&C) Committee asked consultation participants to answer two questions: 1) Do you agree that the lawyer licensing process should incorporate both training and assessment, in the manner described by the Committee above, to determine entry level competence? and 2) If the Law Society proceeds with implementing the Committee’s recommendations, what concern(s) do you have regarding the implementation? How could those be addressed? See Law Society of Ontario, “Modernizing the Law Society of Ontario’s lawyer licensing candidate assessment process” (Toronto, last visited 24 August 2026), online: <<https://lso.ca/about-lso/initiatives/consultation-lawyer-licensing-process>>.

¹³³ *Ibid.*

¹³⁴ *Ibid.* The LSO would deliver the training through self-directed modules, workshops, and virtual law firms.

In May 2025, Quebec published its Lawyer Competency Framework outlining the key roles that a lawyer must fulfill in practice.¹³⁵ Competencies are grouped under each role with various performance indicators tied to each one. Of the 20 records assigned to Quebec's new framework, relationship management features highest among all competencies captured (13; 65%) followed by substantive knowledge (12; 60%) and a tie amongst communication and critical analysis (8; 40% respectively). Quebec's emphasis on a lawyer's relational and client-responsive role draws out the following A2J-related, people-centred competencies:

- accurately identify the needs of clients and stakeholders;
- recommend practical, tailored, and relevant solutions;
- support and guide clients through informed choices;
- effectively manage client and stakeholder expectations;
- build a climate of trust;
- communicate clearly and verify understanding of information;
- engage in active listening, demonstrate empathy
- contribute to positive professional relationships; a culture of well-being that respects equality and recognizes bias concerns; and
- promote the accessibility and quality of justice.¹³⁶

Atlantic and Northern data reveal heavy concentration on substantive knowledge, analysis, communication and traditional practice competencies.

The noted differences are not to be confused with suggesting differences in actual competence of lawyers across regions. Nor did the project team equate them with any other normative importance. For example, both technology and well-being are explicitly captured in the WCCP entry-to-practice competencies even though they did not predominantly feature in the overall records reviewed. Often lower-frequency competencies arise in frameworks or regulatory guidance that deal specifically with emerging or specialized practice expectations.

Nevertheless, these regional differences show that the focus of A2J-related competencies can vary from one regulator to another, with some emphasizing substantive legal knowledge and traditional legal skills, while others also introduce people-centred dimensions to improve communication and trust. Also of interest is that competency frameworks that were recently

¹³⁵ Barreau du Québec, "Référentiel de compétences des avocats" (5 May 2025), online: <<https://www.barreau.qc.ca/fr/membres-ordre/ressources/normes-outils-references-guides/referentiel-competences-avocats/>>.

¹³⁶ *Ibid.*

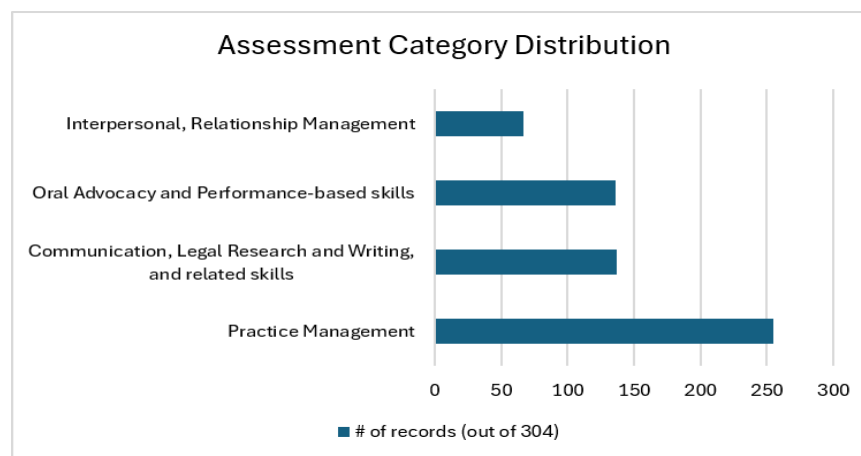
revamped tend to highlight competencies centred on people and relationships, which may reveal a growing focus on people-centred competencies.

3. Assessment Categories, Criteria, and Proficiency Levels

It is one thing to identify competencies, but another to provide specific assessment categories, criteria, and expected proficiency levels that test their achievement. Of the 436 Canadian competency records reviewed, 363 (83.3%) are listed as mandatory. Yet, not all competencies are matched with specific assessment categories or criteria: assessment categories were captured in only 69.7% (304) of the total records reviewed. This suggests an important gap between the A2J competencies required of lawyers and the concrete identification of how these competencies are assessed.

The types of competencies that are associated or not with specific assessment categories further suggest that there may be a gap between the increasingly people-centred content of competency frameworks – detailed above – and the way assessment categories are described. In general, while regulators recognize competencies such as interpersonal competence, written and conventional practice skills remain more visible in assessments. Of the 304 Canadian regulatory records reflecting a substantive assessment category, the following competency areas dominate:

Figure 2.0 Assessment Categories



Assessment categories do not always directly align with the WCCP or other standard competencies. Instead, and where available, they are grouped under overarching skills. The total number of records exceeds 304 in Figure 2.0 because categories overlap in the dataset. This result does not suggest that a given competency is entirely unassessed. Rather, things like client

communication and relationship management (for example) remain prominent competency expectations but are not consistently translated into specific assessment tasks that could easily be captured in the review.

A strong counterexample occurs in the Western Canada findings, which include assessment categories that specify written and oral communication skills, interviewing, and negotiation. In BC and other PREP jurisdictions, records also describe the type of written communications (e.g. opinion letters), contract drafting, client interviewing, and advocacy skills to be assessed. Several regulators emphasize client simulation as a key assessment model to test competencies.

Moreover, assessment criteria feature across 71.3% of the total records reviewed. The Canadian data provide some helpful insight into what new lawyers must be able to do in practice. But there are opportunities to fill gaps to expressly indicate the proficiency level required for A2J-related competence. For instance, knowing what regulators expect for client communication proficiency does not immediately translate into how we can measure whether a candidate can demonstrate active listening, identify client goals from a people-centred lens, prioritize accessibility of information, or effectively manage client relationships.

Drawing from the above, the regulatory blueprint increasingly recognizes A2J-related, people-centred competencies, but assessment design does not yet consistently express the specific expectations across several skills required for early A2J practice.

4. Uncovering an A2J Competency Inventory

The competency frequency data highlights those A2J-related competencies that ground a lawyer's ability to accurately diagnose a legal problem and identify possible solutions. But frequency measures do not independently reflect people-centred practice. The ability to diagnose solutions must also connect to a client's individual circumstances, needs, objectives, resources, and ability to meaningfully access and use legal information and services. This section explores some of the independent competencies to find common ground and establish a preliminary A2J competency inventory.

Practice management is the most frequently coded competency (143 of 436 records; 32.8%). This competency includes file management, deadlines, workload, confidentiality, risk, administrative systems, and other operational aspects of legal practice. This finding is notable because A2J depends on both legal expertise and reliable service delivery. Missed deadlines, poor communication, inaccessible processes, or inadequate file management systems can themselves create unnecessary and preventable A2J barriers for a client.

Client communication also features prominently in regulatory data. Broader Canadian frameworks recognize skills like interviewing, active listening, communicating clearly, explaining legal information and options, establishing client and professional relationships, receiving and executing instructions, managing expectations, and advising. These competencies link directly to A2J because they determine whether a client understands their legal problem(s), and can meaningfully participate and make informed decisions about their legal issues.

Relationship management arises less frequently than general or client communication, but remains a significant A2J-related element within the overall competency landscape. Further, the WCCP connects competent practice with establishing and maintaining relationships, identifying client goals, and communicating effectively under the umbrella of a people-centred practice. Professional responsibility and ethics are among the most frequently cited competencies. They encompass professional standards, integrity, confidentiality, conflicts, professional judgment, duties to clients and the justice system, and the responsible conduct of legal practice.

The above represent an important foundation for A2J lawyering because people-centred practice is not simply an interpersonal preference. Rather, it operates within professional competence, client interests, EDI, communication, and responsible service delivery. Canadian frameworks also recognize advocacy, advice, negotiation, and alternative dispute resolution as competent practice, although their frequency varies considerably. Similar patterns emerge when examining well-being. These skills tie directly to A2J lawyering because effective legal service depends on working with a lawyer who presents options proportionate to client needs and objectives, where possible. Skills in negotiation, mediation, and advocacy reflect a continuum of problem-solving capabilities versus strictly standalone technical abilities.

Canadian competencies aim to expressly address EDI, A2J, Indigenous peoples, colonial impacts, and Truth and Reconciliation. They provide an important contextual dimension that distinguishes Canadian regulatory expectations from much of the international comparator data. The WCCP features both A2J and equity within professional competency. Indigenous law, legal orders, experiences, colonial impacts, and reconciliation in legal practice hold a standalone competency domain.

Since A2J shows up in experiential, procedural, and substantive ways for different justice seekers, we aimed to connect competencies to reveal the knowledge and skills expertise required to build an A2J, people-centred practice. We identified six overarching competency groupings:

1. **Substantive legal knowledge and problem-solving** work together to help lawyers identify legal and non-legal issues within a client’s story. A2J lawyers must find and apply substantive law and legal principles, analyze facts and assess the evidence, exercise sound judgment, and develop practical, client-centred legal solutions.
2. **Client communication, relationship management, and advising** equip lawyers to better understand the justice seeker through accessible, plain language communication techniques. A2J lawyers must build client trust to identify specific goals and support them to make informed choices from the advice given.
3. **Practice, technology, and financial management** ensure that A2J lawyers deliver reliable services in a secure, efficient, and sustainable manner.
4. **Ethics and professional responsibility** frame an A2J lawyer’s capacity to be responsible and trustworthy towards clients, their peers, and the profession.
5. **Advocacy and dispute resolution** ensure that a client’s interests and goals are assessed proportionately against all potential avenues of resolution.
6. **A2J, EDI, and Reconciliation** recognize and respond to the historical and systemic barriers, discrimination, colonial impacts, and inequality faced by communities of justice seekers across the legal system.

An A2J, people-centred lawyer does not simply understand what A2J is. Rather, the connections shown above reinforce the need for lawyers who recognize that clients do not experience legal systems on equal terms. Economic circumstances, discrimination, colonialism, disability, language, geography, vulnerability, and many other barriers may affect both the legal problem and the practical access to a workable legal solution. A2J competency thus lies in a lawyer’s ability to integrate and shape legal knowledge, communication, relationships, sound judgment, ethics, advocacy, and reliable service delivery around a justice seeker’s individual circumstances and objectives.

Upon close review of the WCCP competency domains and related materials explored above, two organizing principles appear to guide the development and application of A2J-specific competencies: 1) direct A2J competency; and 2) required supporting competencies that foster A2J practice. With this lens, the following A2J-specific, people-centred competencies emerge:

Direct A2J Competency

- accessible, client-centred, plain language communication (oral and written);
- advice that is both proportionate and reflective of the client's interests, goals, and circumstances;
- active listening to effectively identify client needs, goals, and objectives;
- collaborative practice with clients and colleagues;
- dispute resolution and proportionate problem solving;
- equity, diversity, and inclusion practices alongside trauma-informed lawyering that recognize and consider the impact of A2J barriers faced by the client (and community, where applicable);
- establish and maintain client relationships;
- financial awareness and management over key aspects of legal practice;
- meaningful and responsive knowledge and skills that support Indigenous peoples' experiences, Truth and Reconciliation in practice;
- responsible use of technology, including generative AI tools; and
- well-being (including emotional intelligence to identify help when needed and self-care to maintain practice readiness).

Required Supportive Competencies

- advice and advocacy
- critical thinking
- ethics
- legal research and writing
- practice management
- professional responsibility
- substantive legal knowledge

This shift towards people-centred competencies as evidence of practice-ready lawyering in Canada, and the required supporting knowledge and skills to achieve them, transforms traditional professional competencies into their practice-ready forms. Implementation of the WCCP remains gradual across Canadian law societies. But increased use of the WCCP – or similarly people-centred frameworks, such as the new Quebec framework – to shape bar admission testing and new lawyer readiness to practice highlights a monumental shift towards a new way of lawyering in Canada.

The Canadian competency review also confirms that A2J lawyering does not function as a single, discrete competency. Rather, it reflects a combined exercise of multiple professional competencies that centre a client’s experience and goals. A lawyer’s competence to perform with an A2J lens also extends beyond understanding the barriers faced by clients in the justice system. Instead, lawyers must know and practice effective communication strategies, employ meaningful and diverse efforts to understand the client’s experiences and objectives, provide useful and actionable advice, manage professional relationships, identify appropriate and timely dispute resolution processes, advocate effectively and offer services ethically, reliably, and sustainably.

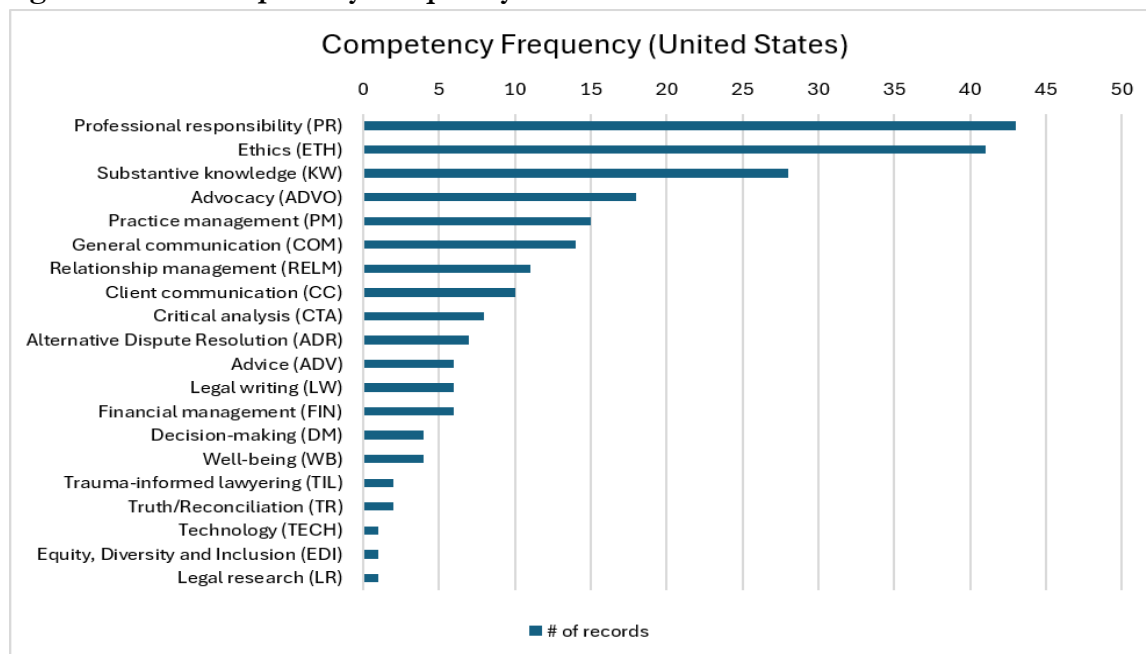
IV. A2J Competencies on the International Stage

The project scope did not support a fulsome state- or territory-wide review of the select international jurisdictions. Instead, the project team reviewed overarching national regulatory data. As such, the research is not exhaustive. Still, the findings provide interesting comparison points to highlight and contextualize key aspects of the Canadian landscape.

1. A2J Competencies in the United States of America

Of the 129 records captured at the national level, the data reflects a more traditional competency environment:

Figure 3.0 Competency Frequency at the US national level



Notably, 80 of the 129 records reviewed draw data from the National Conference of Bar Examiners Multistate Professional Responsibility Exam.¹³⁷ The MPRE measures “a candidate’s knowledge and understanding of established standards related to the professional conduct of lawyers.”¹³⁸ Professional responsibility is reflected under several MPRE subtopics. As such, the frequency reflected above tends to be higher overall.

The MPRE provides a different route to A2J competence. It tests knowledge and understanding of professional-conduct standards. The current subject outline includes twelve areas. Several show direct A2J relevance:

- the client-lawyer relationship, including scope, objectives, decision-making, communication, and fees;
- competence, diligence, and malpractice;
- advocacy;
- the lawyer as adviser and negotiator;
- ethical financial management; and
- lawyers’ duties to the public and legal system, including voluntary pro bono service, service in legal-services organizations, and law reform.

A2J is partially framed as professional responsibility to clients and to the legal system, rather than as a separate substantive topic. A key limitation of the MPRE is that it uses a traditional, multiple-choice exam to test knowledge and application, rather than by observing direct performance.

The American Bar Association (ABA) Standards and Rules of Procedure for Approval of Law Schools apply directly to law school programs rather than remaining restricted to post-graduation licensing requirements.¹³⁹ The ABA Standard 302 sets out the minimum competencies that US law schools must include in the curriculum, as follows:

- Knowledge and understanding of substantive and procedural law;

¹³⁷ National Conference Bar Examiners, “Multistate Professional Responsibility Exam” (last visited 24 August 2026) online: <<https://www.ncbex.org/exams/mpre/about-mpre>> [NCBE, MPRE]. Except for Wisconsin and Puerto Rico, all US states require completion of the MPRE to be admitted to the Bar. MPRE requirements vary across jurisdictions so candidates must review their respective state to confirm.

¹³⁸ *Ibid.*

¹³⁹ American Bar Association, “2026/2027 Standards and Rules of Procedure for Approval of Law Schools” (last visited 24 August 2026), online: <https://www.americanbar.org/groups/legal_education/accreditation/standards/standards-rules/> [ABA, “2026/2027 Standards and Rules”]. The data reviewed for this project reflects the 2025/2026 version.

- Legal analysis and reasoning, legal research, problem-solving, and communication (written and oral);
- Ethics and professional responsibility to clients and the legal system; and
- Other professional skills needed for competent and ethical participation in the legal profession.¹⁴⁰

Law schools can determine “other professional skills”, which may include A2J-related competencies like interviewing, counselling, negotiation, fact development and analysis, trial practice, document drafting, conflict resolution, practice and file management, collaboration, cultural competency, and self-evaluation.¹⁴¹

The option for law schools to mandate cultural competency as an “other professional skill” is notable because Standard 206—Diversity and Inclusion was repealed on September 8, 2026. This standard previously required law schools to show concrete efforts and commitment to diversity and inclusion “by providing full opportunities for the study of law and entry into the profession by members of underrepresented groups, particularly racial and ethnic minorities, and a commitment to having a student body that is diverse with respect to gender, race, and ethnicity”.¹⁴² This standard also applied to law school faculty and staff.

A strong example of the US assessment alignment with the Canadian competency framework is the NextGen Uniform Bar Examination (NextGen UBE). This exam assesses several foundational lawyering skills alongside fundamental legal concepts and principles.¹⁴³ The NCBE places client objectives, interests, and limitations squarely within the lawyer-client relationship management practices. Going forward, law schools preparing students using doctrinal instruction and conventional issue-spotting exams will need to expand to include people-centred practice capabilities under the NextGen UBE.

The project team also reviewed two supplementary sources from the Institute for the Advancement of the American Legal System: 1) *Foundations for Practice*,¹⁴⁴ and 2) *Building a Better*

¹⁴⁰ *Ibid* at 21-22.

¹⁴¹ *Ibid* at 22.

¹⁴² *Ibid* at 17; for the repeal, see Accreditation Council, “Law School Accreditation Standard 206 Formally Repealed” (8 September 2026), online: *American Bar Association* <https://www.americanbar.org/content/dam/aba/administrative/legal_education_and_admissions_to_the_bar/2026/2026-september-standard-206-decision.pdf>.

¹⁴³ NCBE, NextGen UBE, online: <<https://www.ncbex.org/exams/nextgen/about-nextgen>>.

¹⁴⁴ IAALS, *Foundations for Practice* (2016), online: <<https://iaals.du.edu/projects/foundations-practice-20/foundations-10>>. Note that *Foundations for Practice 2.0* is a new project currently underway to develop a new competency model.

Bar.¹⁴⁵ The IAALS' *Foundations for Practice* noted that entry-level practice success requires a mix of legal skills, professional competencies, and personal characteristics that complement legal knowledge. From a national survey of over 24,000 lawyers, the research found that law firms regard A2J-related practical experience gained through legal clinics, externships, and field placements, among others, as the best measure of student competence in key areas.

The 2020 *Building a Better Bar* report noted twelve core competencies that form a baseline against which all law school graduates could be measured. Those that tie closely to key A2J-related competencies are reflected below¹⁴⁶:

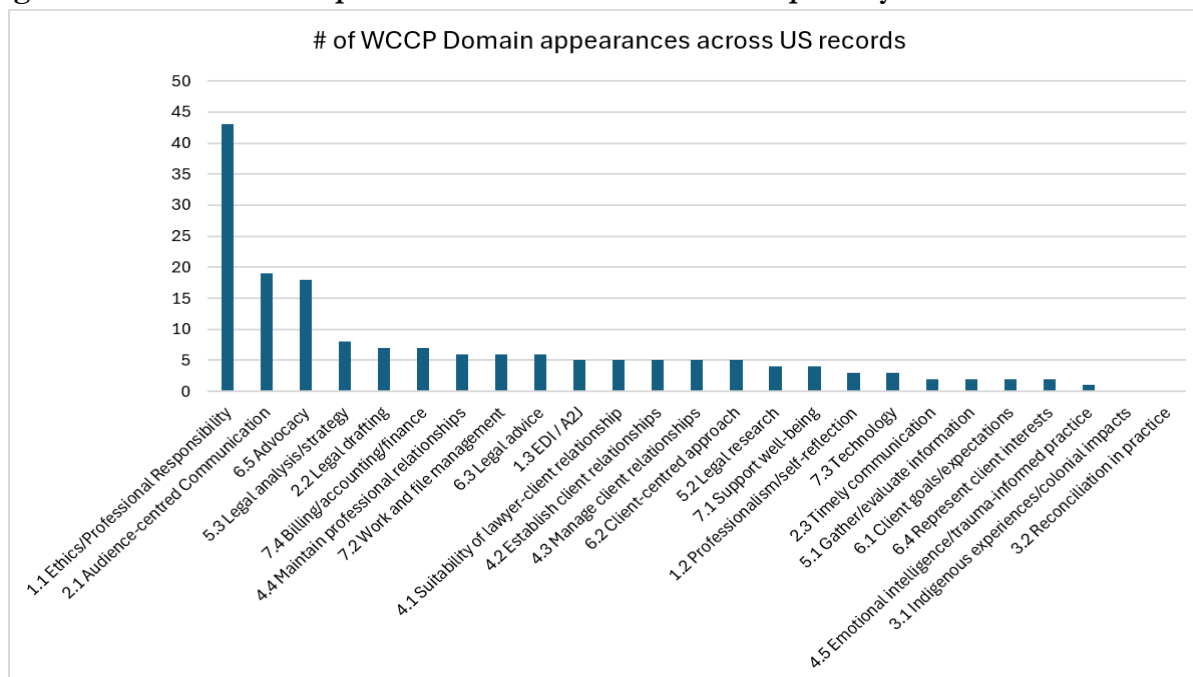
1. act professionally per the Rules of Professional Conduct
2. interpret legal information
3. interact effectively with clients
4. identify legal issues
5. communicate as a lawyer
6. understand the “Big Picture” of client matters
7. manage a law-related workload responsibly
8. cope with the stresses of legal practice
9. pursue self-directed learning

The US data reveals that 23 out of 25 WCCP competencies share some connection to US national competency criteria:

¹⁴⁵ IAALS, *Building a Better Bar: The Twelve Building Blocks of Minimum Competence* (December 2020), online (pdf): https://iaals.du.edu/sites/default/files/documents/publications/building_a_better_bar.pdf.

¹⁴⁶ The other three competencies are to “understand legal processes and sources of law”, “understand threshold concepts across many different subject areas”, and “conduct legal research”.

Figure 4.0 WCCP competencies across US national competency sources



Note: n = # of appearances across all 129 records. Competencies listed reflect the WCCP numerical classifications. The project team coded US national content that linked to a WCCP domain. The order of information does not represent a ranking of importance. The chart limitedly shows the breadth of coverage across the data reviewed.

Notably absent from the US data reviewed is any explicit emphasis on Indigenous Laws and Legal Orders, colonial impacts, or Truth and Reconciliation efforts.

The US framework offers Canada a useful model for connecting competencies to legal education. The US research specifies experiential credits, pro bono/public-service opportunities, professional-identity development, and an entry-level licensing examination that expressly assesses client relationship management.

2. A2J Competencies in England and Wales

The project team captured 80 records of information across three core frameworks:

1. Solicitors Regulation Authority (SRA)¹⁴⁷;

¹⁴⁷ Solicitors Regulation Authority, *Standards and Regulations* (last visited 24 August 2026), online: <https://www.sra.org.uk/solicitors/standards-regulations/>.

2. Bar Standards Board (BSB) Professional Statement for Barristers¹⁴⁸; and
3. CILEX Competency Framework¹⁴⁹.

All 80 records reflect a mandatory criterion, with 83.8% (67) linked to a specific threshold or proficiency expectation, and 13 tied directly to the CILEX Professional Competency Framework.¹⁵⁰ The SRA Statement of Solicitor Competence sets out the knowledge and skills that a solicitor must demonstrate in practice, assessed against competencies under the Solicitors Qualifying Examination (SQE).¹⁵¹ These criteria complement the BSB Professional Statement for day-one practice expectations. Together, these frameworks expand lawyer competency beyond substantive knowledge alone, with slightly different approaches to defining competency for legal practice.

The SRA Statement of Solicitor Competence applies a strong competency-to-assessment alignment that operates across four broad competency domains:

- Ethics, professionalism, and judgment;
- Technical legal practice skills;
- Working with others; and
- Self-management and practice management.

The above competencies are measured by performance indicators assigned to each one. The threshold standard to meet a given competency is Level 3. New lawyers must perform routine practice tasks to this level (at a minimum), exercise sound judgment to assess legal issues, recognize

¹⁴⁸ Bar Standards Board, “Future Bar Training: Professional Statement for Barristers--Incorporating the Threshold Standard and Competences” (England and Wales, September 2016), online (pdf): <https://www.barstandardsboard.org.uk/static/0279b209-dab6-40c9-a554af54994e2566/bsbprofessionalstatementandcompetences2016.pdf> [BSB].

¹⁴⁹ CILEX, “Competency Framework” (last visited 24 August 2026), online: https://www.cilex.org.uk/study/competency_framework/.

¹⁵⁰ The CILEX regulatory framework requires separate qualifying experience and performance indicators that reflect a lawyer's competency across core principles, six core behaviours, and seven core activities. Although we reviewed the CILEX content in early research, we do not include detailed analysis on this framework. For more information, see CILEX Competency Framework, *ibid*. See also CILEX, “Professional Competency Framework” (last visited 24 August 2026), online: https://www.cilex.org.uk/study/competency_framework/; CILEX, “Professional Competency Framework—Core Principles Model” online: https://www.cilex.org.uk/study/competency_framework/competency_framework_model/.

¹⁵¹ Revised SQE and Functioning Legal Knowledge (FLK) specifications were released in April 2026 and will apply to assessments from September 1, 2026, onward. The first assessment under the new SQE2 will take place in October 2026. For more information, see SRA, “Updated SQE Assessment Specifications and FLK published following annual review” (30 April 2026), online: <https://sqe.sra.org.uk/news-item/2026/04/30/updated-sqe-assessment-specifications-and-flk-published-following-annual-review>.

and seek out support, as needed, address practice management issues, and understand how individual actions relate to client or operational objectives.

The SQE1 assesses how well a candidate applies functioning legal knowledge¹⁵² to realistic, client-based, ethical scenarios. The SQE2 reviews a candidate's ability to negotiate and perform:

- client interviewing and legal analysis;
- advocacy; and
- legal drafting, research, and writing.

Like the SRA structure, the BSB Professional Statement outlines what a barrister must be able to do on the first day of practice, measured across four broad competency domains:

- barrister distinctive characteristics¹⁵³;
- personal values and standards;
- working with others (clients and colleagues); and
- practice management (personal and professional).

The BSB follows a more traditional competency framework, tied to traditional practice knowledge and skills, but through a people-centred lens that also considers diversity, individual needs, empathy, respect, courtesy, and communication.¹⁵⁴

3. A2J Themes Emerging from England and Wales

Due to the differences in competency frameworks, the project team could not easily apply the coding matrix to extract substantial quantitative data. Instead, A2J competencies emerge through a theme-based review, as follows:

¹⁵² **FLK1:** (1) Business Law and Practice; (2) Dispute Resolution; (3) Contract Law; (4) Tort; (5) Legal System of England and Wales; Constitutional and Administrative Law and EU Law (collectively referred to as 'Legal System') and (6) Legal Services. **FLK2:** (1) Property Law and Practice; (2) Wills and the Administration of Estates; (3) Solicitors Accounts (examined in the context of Property Law and Practice and Wills and the Administration of Estates); (4) Land Law; (5) Trusts Law; (6) Criminal Liability and (7) Criminal Law and Practice. See SRA, "SQE1 Assessment Specification" (last visited 24 August 2026), online: <<https://sqa.sra.org.uk/assessments/sqe1-assessments/sqe1-specification>>.

¹⁵³ Legal knowledge, skills and attributes; Practical knowledge, skills and attributes; Advocacy; Professional standards: BSB, *supra* note 148 at 2.

¹⁵⁴ *Ibid* at 17.

Client circumstances, needs, and objectives: Solicitors must understand and assess a client's financial and other personal circumstances, objectives, priorities, and limitations when advising on options. Client relationships must also consider potential vulnerabilities and individual experiences. This data aligns with the people-centred problem-solving approach discussed earlier in the report.

Accessible communication: The SRA equates accessible communication with a professional ability to adapt to individual circumstances using an appropriate communication method and style for each client. Plain, clear, and succinct language is encouraged while avoiding unnecessary legal jargon or technical terminology. A2J lawyering also demonstrates empathy and sensitivity when delivering sensitive information to a client, while ensuring that the client fully understands. The A2J themes most prominent here are client-centred and accessible communication matched with meaningful client participation throughout the process.

Agility and Vulnerability: The BSB and the SRA expect lawyers to identify and take reasonable, practical steps to meet a client's individual service needs, including those in vulnerable situations. Professionals accomplish this A2J practice goal by learning about and responding to a client's background, life experience or protected characteristics, and making practice adjustments to preserve meaningful service delivery.

Client decision-making: The SRA stretches competence beyond telling a client what the law is and how it might apply to their legal issue. Instead, professional competency requires identifying and conveying potential courses of action and outcomes in a way that fosters a client's confidence to decide on their own. This approach draws out people-centred practice by fostering a client's agency over their legal matter.

Cost and affordability of legal services: Managing client fee and service scope expectations is paramount. Barristers must avoid unnecessary fees and act cost-effectively.

Equity, diversity and inclusion: These competencies feature across all records examined. The BSB standard requires the active pursuit of equity and respect for diversity and responsiveness to a client's circumstances.

Service awareness across the justice system: The BSB competency framework requires barristers to be aware of direct-access clients¹⁵⁵ and litigants in person (self-represented litigants),

¹⁵⁵ Lay clients who can instruct barristers directly without first instructing a solicitor or other lawyer.

while recognizing organizations that support the administration of justice and other advice and funding sources.

4. A2J Competencies in Australia (national)

The project team generated 323 records from the following competency framework sources:

- Early Career Lawyer Capability Framework¹⁵⁶;
- Solicitor Capability Framework¹⁵⁷;
- Legal Professionals Capability Set¹⁵⁸ (Public Sector); and
- Law Admissions Consultative Committee (LACC) Practical Legal Training (PLT) Competency Standards for Entry-Level Lawyers¹⁵⁹.

The competency data distribution (across frameworks) is captured in Appendix F. The LACC PLT Competency Standards serve an important function in the data analysis because the regulatory guidance focuses on entry-level lawyer competence versus the broader public sector or continuing professional capability content. From the 81 LACC PLT Competency Standards records, the following distribution of competency domains appears:

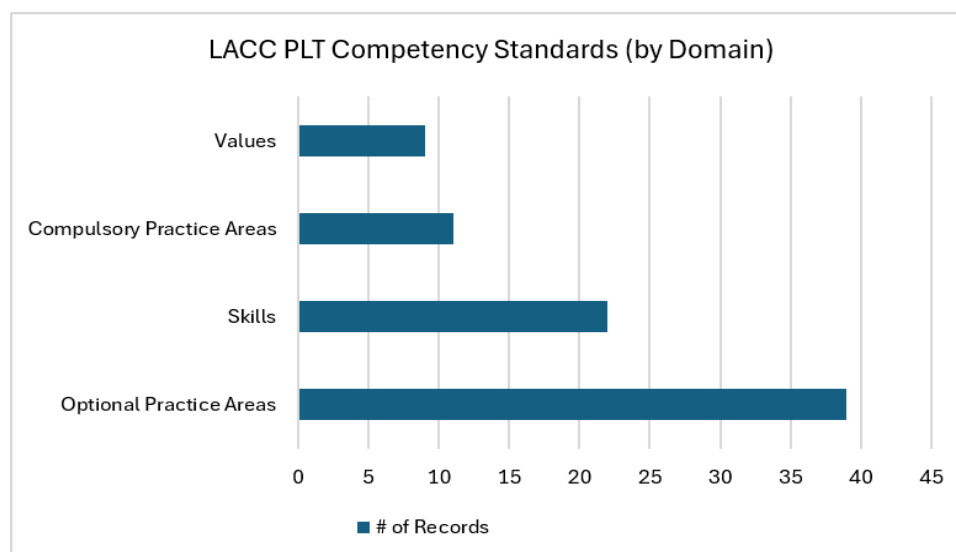
¹⁵⁶ Victorian Legal Services Board Commission, “Early Career Lawyer Capability Framework” (last updated 12 December 2025), online: <<https://lsbc.vic.gov.au/resources/early-career-lawyer-capability-framework>> [VLSBC].

¹⁵⁷ The Law Society of New South Wales, “Solicitor Capability Framework” (last visited 25 August 2026), online: <<https://www.lawsociety.com.au/Law-Society-of-New-South-Wales-Solicitor-Capability-Framework>>.

¹⁵⁸ New South Wales Government, “Legal Professionals Capability Set” (last visited 25 August 2026), online: <<https://www.nsw.gov.au/nsw-government/public-sector-capability-framework/occupation-specific-capability-sets/legal-capability-set>>.

¹⁵⁹ Legal Services Council, “Law Admissions Consultative Committee--Practical Legal Training Competency Standards For Entry-Level Lawyers” (revised October 2017), online (pdf): <<https://legalservicescouncil.org.au/documents/PLT-competency-standards-for-entry-level-lawyers-Oct-2017.pdf>>. Note that these sources were reviewed as at April 2026, which leaves out more recent consultations in Summer 2026.

Figure 5.0 LACC PLT Competency Standards—Distribution (81 records)



The four competency domains contain prescribed knowledge and skill levels that entry-level lawyers must demonstrate:

- **Values:** ethics and professional responsibility;
- **Compulsory Practice Areas:** civil litigation, commercial and corporate, property;
- **Skills:** lawyer’s skills, problem solving, work management and business skills, and trust and office accounting;
- **Optional Practice Areas:** Subject to the Compulsory Practice Areas, any two of: administrative law, banking and finance, criminal law, consumer law, employment and industrial relations, family law, planning and environmental law, wills and estates.¹⁶⁰

The model above combines general professional skills and values with a new lawyer’s ability to perform legal work in defined practice areas.

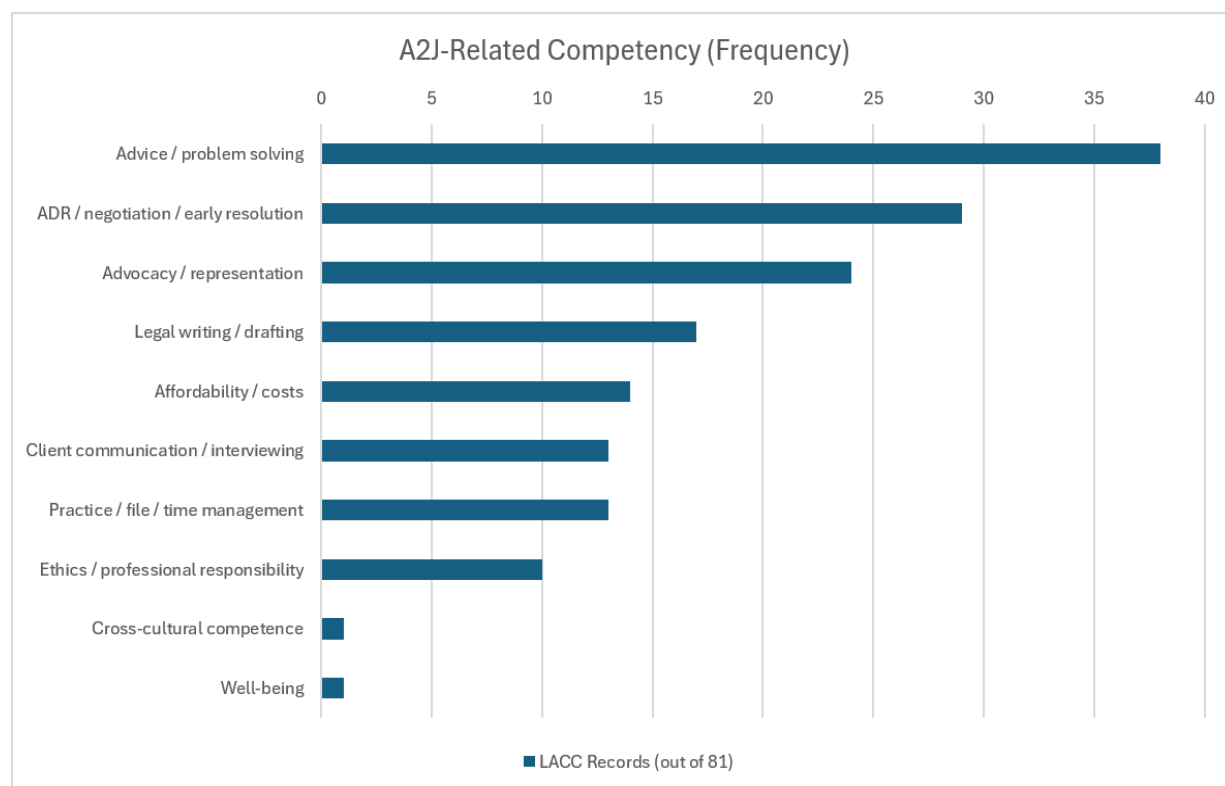
Assessment categories vary across the LACC PLT Competency Standards but appear to consistently rely on practice-based skills like critical analysis of facts and legal issues, interviewing, negotiation, advice and advocacy, practice management, and ethics and professional responsibility. Like other jurisdictions reviewed for this project, Australia’s regulatory approach to establishing A2J-type competencies ties to skills that require effective client communication, recognition and use of

¹⁶⁰ *Ibid* at s 3.1(a). Note that s 3.1(b) mandates that s 3.1(a) applies to all applicants who take PLT in Australia.

alternative dispute resolution, accessible and comprehensive legal advice, and fee considerations, among others.¹⁶¹

Based on a review of the current LACC competency titles, descriptions, and performance indicators, the following A2J and people-centred practice competencies emerge:

Figure 6.0 A2J and People-centred Competencies (uncoded)



As other frequency- or visibility-based data captures in the report, the above dataset does not measure importance. For example, trauma-informed lawyering is subsumed under ‘Client-centric skills’ and ‘Professional Development and Well-Being’ in the Early Career Lawyer Capability Framework, which states that an entry-level competent lawyer:

¹⁶¹ In June 2026, the Law Council of Australia published the findings from its consultation on the PLT program: Law Council of Australia, Legal Services Council Admissions Committee and Law Admissions Consultative Committee, *Consultation on practical legal training* (1 June 2026), online (pdf): <<https://lawcouncil.au/publicassets/cc03184c-335e-f111-94c7-005056acd090/4854%20-%20S%20-%20Consultation%20on%20practical%20legal%20training.pdf>>. The proposed reforms aim to address overarching concerns expressed by members of the legal profession about the PLT delivery and experience: *ibid* at 3.

- Adjusts approach to meet the needs of clients experiencing vulnerability;
- Identifies whether their client is experiencing vulnerability (e.g. due to age, race, disability, socio-economic background, sexual orientation or gender identity, migration status or other circumstances);
- Identifies whether the client has (and continues to have) capacity to provide instructions; Considers the client's legal capability (i.e. the client's legal knowledge, skills, attributes, resources to deal with legal problems and any vulnerability factors) in relation to all aspects of their matter;
- Tailors their communication style to support client understanding and agency, and endeavours to take a trauma-informed approach, where appropriate;
- Verifies that their client understands the information and advice provided;
- Understands the factors that can negatively affect workplace and personal wellbeing and psychosocial health (e.g. high workload, stress, vicarious trauma, negative workplace behaviour and culture);
- Establishes and sustains strategies to support personal resilience, health and wellbeing; and
- Recognizes signs of poor wellbeing (including vicarious trauma and burnout) and takes steps to ameliorate work-related stressors (e.g. by proactively discussing concerns and possible solutions with their supervisor or accessing their Employee Assistance Program).¹⁶²

The strongest pathway alignment ties to performance-based assessments and supervised workplace learning opportunities. Although we did not review or capture educational pathways data at the international level, the preliminary data guides how we can examine A2J educational pathways across the Canadian landscape in the next part.

5. Uncovering A2J Competencies from the Australian Data

The A2J strengths emerging from the data reflect practical, problem-solving strategies aligned with accessible and alternative dispute resolution mechanisms, client-based advice, advocacy and communication, plain language legal writing and drafting, and conscientious legal services that effectively and ethically manage time and costs associated with service delivery.

¹⁶² VLSBC, *supra* note 156 at 9 and 12.

Notably, the LACC competency on cross-cultural communication uses a performance indicator that extends beyond general communication expectations found in other regulatory frameworks. Instead, the LACC requires entry-level lawyers to recognize verbal and non-verbal communication and cultural differences, and the effect of those differences on interactions with, and access to, lawyers and the justice system. Although it functions as a standalone competency (versus a framework-wide expectation), its presence introduces an important A2J, EDI lens that could be applied across all competency areas.

The following four overarching A2J competency-based themes emerge from the research gathered:

1. Competency depends on observable performance of what entry-level lawyers can do in early practice.
2. Accessible client service and problem-solving are tied directly to a lawyer's entry-level readiness to practice.
3. Cost and time management are directly tied to A2J competency. Service design and delivery approach share a direct link to a client's meaningful and practical access to legal information and services.
4. Ethics and professional responsibility function as A2J fundamentals over and above their rule-based, regulatory function. Entry-level competence emphasizes an ethical duty and obligation to offer pro bono legal services.

The Australian data reveals important opportunities to enhance A2J education pathways to:

- make people-centred communication, accessibility, and culturally responsive practice integrated expectations across several, rather than isolated, competency domains;
- integrate trauma-informed and Indigenous Peoples and Community, Law and Legal Order dimensions into interviewing, advice, advocacy, dispute resolution and professional responsibility;
- articulate technology competence and responsible AI use as entry-level competencies;
- strengthen assessment of the client's ability to understand, participate in, and make informed decisions about their legal matter; and
- preserve a strong performance-indicator model when modernizing the substantive competency inventory.

Australia places an explicit A2J expectation within the regulatory infrastructure for practical legal training, rather than relying entirely on elective courses or extra-curricular exposure. Students must understand what adequate and affordable A2J means for clients, and fulfill their role to facilitate A2J in practice.

A Canadian A2J competency framework could similarly connect competencies such as client communication, culturally-responsive practice, dispute resolution, ethics and professional responsibility, and service accessibility considerations to observable performance indicators and transition-to-practice assessments.

The Australian framework also provides a useful basis for distinguishing:

- what students should know
- what they should be able to do
- how competence should be demonstrated
- where competence should be developed.

This type of competency assessment structure could be applied at the pathways level to assess whether doctrinal courses, clinics, externships, student- and faculty-led initiatives merely expose students to an A2J issue or build and assess a professional competency.

6. Conclusions from the International Review

This review, although primarily qualitative and necessarily limited in scope, reveals some important insights into the Canadian competency framework, both for its strengths and potential gaps.

The data reveals that Canadian competency frameworks, especially more recent ones, put growing emphasis on people-centred competencies that closely align with A2J lawyering, including accessible client communication and relationship-building, active listening to their needs and goals, well-being, and awareness of equity, diversity, inclusion, trauma-informed lawyering, and truth and reconciliation with Indigenous peoples. In that respect, Canada has innovated compared to the international frameworks reviewed, although increasingly these other frameworks similarly introduce a people-centred focus.

The Canadian framework could draw inspiration from international frameworks in a few respects. First, professional and ethical competencies in some jurisdictions – such as the US – include clear duties to engage in pro bono legal services and law reform, turning A2J lawyering into a

duty not only to clients, but to the justice system. While some Canadian competencies hint at similar duties, they are not as clearly expressed. Second, the concept of “vulnerability” in England and Wales may spark interesting reflection in Canada, where this is also not as clearly expressed. Third, Canadian criteria and assessments continue to focus primarily on traditional legal skills, despite the growing importance of people-centred competencies. The assessment categories that other jurisdictions (chiefly, Australia) have developed around these competencies, and the connection to legal education, could inspire future developments in Canada.

◆ PART 4: A2J EDUCATION PATHWAYS—LAW SCHOOLS

I. Introduction

The A2J Education Initiative relied upon two broad axes for the research: we sought to identify, first, the A2J Competencies that lawyers should demonstrate during their studies (set out in Part 3 above), and second, the educational pathways through which they can do so (reflected in legal education, faculty, and student initiatives). This part summarizes the research and findings on A2J educational pathways across Canada, responding to the following guiding questions:

- How do law schools teach A2J concepts and principles?
- Which A2J pathways dominate?
- Where do A2J pathways appear in the curriculum?
- What are the gaps and opportunities?

To answer these questions, we looked at the documentation of Canadian law faculties, including their courses, clinics, and other initiatives, from 2024 to 2026.

II. A Look at the Numbers

The Canadian A2J educational pathways research drew from a substantial amount of data. The review of information occurred in two distinct stages. First, the project team cast a wide net to capture all potential A2J courses, learning opportunities, and initiatives from 24 law faculties. This scan required the team to review almost 500 courses for direct or indirect A2J learning connections. The second stage of review examined course descriptions and objectives, learning outcomes and, where available, assessment methods to narrow the scope of coverage. The numbers in this section draw from the second stage findings, so are much lower than the actual volume of course, clinical/experiential, and faculty- or student-led initiative data examined overall.

In total, the second stage of review generated 341 separate records. The final tally of 326 course records (*319 unique) used for the qualitative and quantitative data findings reflects some important consolidations executed by the project team. Several records contained duplicate faculty or course title information. In many cases, faculty listed more than one offering of a given course. Or some similar course offerings were assigned different credit values. Sometimes multiple course

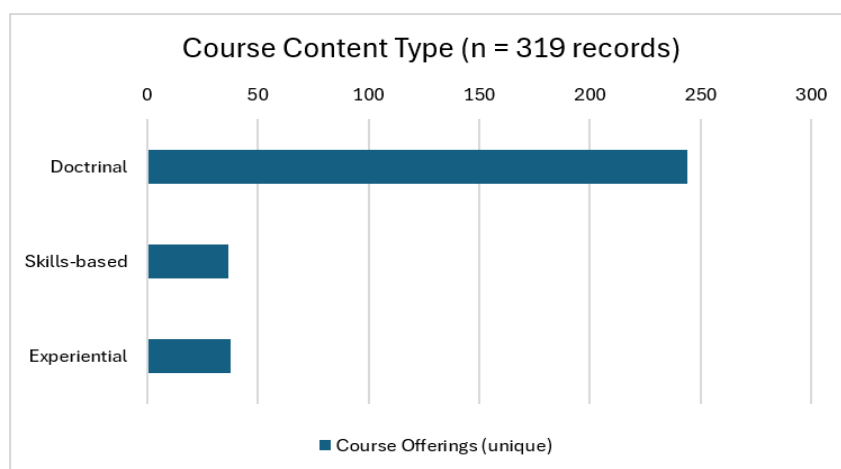
offerings used the same instructor and course objectives, learning outcomes, and assessment data (commonly referred to as “sections” or reflected as two offerings over multiple terms).

When more than one faculty member (or sessional instructor) led a course, and when that shared delivery resulted in changes to the course objectives, learning outcomes, and assessment data, the project team retained those records as separate and distinct. This segmentation helped to ensure that the findings reflected individual faculty efforts to use assessment or evaluation methods that test A2J-type knowledge and skills. In this way, some qualitative data points underwent a third stage of review.¹⁶³ A complete breakdown of the statistical data profile from the records examined appears at Appendix H.

1. Course Content Type

The project team adopted a coding matrix that categorized courses as doctrinal, skills-based, or experiential. The team relied on course descriptions, learning objectives, and course titles. Where course descriptions or learning objectives were not available, the team relied on the course title to conservatively assign a coding category (e.g. Administrative Law treated as doctrinal, unless otherwise noted).¹⁶⁴

Figure 7.0 **Distribution of Course Content Type**



¹⁶³ Consolidating some data did not compromise the qualitative variations in the information used. For example, courses that reflected A2J-specific assessment methods, and correspondingly higher evaluation scores from that data, were retained. Delivery and course type information were also preserved, as were similar courses that offered substantively different educational experiences.

¹⁶⁴ As mentioned earlier in the report, this data does not reflect details from course syllabi or other instructor-specific content. Review of this content would help to confirm assigned categories.

“Experiential” is used across two educational pathways in the data. First, “experiential” reflects courses with experiential-based learning (e.g. disability rights advocacy efforts, experiential modules) within the classroom and coursework. These courses do not specifically mention experiential activities in the field or through clinics. Instead, they use traditional law course design to integrate experiential learning principles within them. Second, “experiential” reflects courses that are tied directly to actual experiential learning opportunities (activities) that appear alongside legal clinics, field schools, etc. These courses offer direct client and community experiences for students to engage with and practice experiential learning principles.

2. Legal Clinics, Field Schools, and Other Experiential Learning Activities

The project team examined 133 legal clinics, field school, and experiential learning activities. While it is difficult to ascertain the exact number of clinics assigned to each faculty (since some do not always offer a complete or current list of all active clinic offerings), every law school offered at least one clinical opportunity (averaging 5.5 per school across the dataset). Appendix I provides a list of sample areas of law that students currently serve through Canadian law school clinics.

Clinics were categorized as faculty-based (33; those specifically listed as faculty-led and generally housed within the law school), community-based (61; those held outside the law school but tied to the law faculty), and student-run (31; programs led by student initiatives or that rely exclusively on student legal information and summary advice services). These classifications generally helped to capture a picture of the clinic framework, but they were less helpful to accurately reflect all records since some did not specify details that could easily be attributed to one of the categories listed. Also, some clinics offered limited descriptive details which, if relied upon to assess clinic type, could misrepresent the scope of services.

3. Faculty / Student Initiatives (includes student clubs/orgs)

The collective 189 total faculty and student-led initiatives reviewed for the project illustrate a spectrum of opportunities for students to engage in A2J education outside the classroom. Beyond legal scholarship opportunities, below is a snapshot of other sample initiatives that reflect student- and faculty-led commitments to A2J:

- **Access-to-Justice Week:** An annual event that joins legal professionals, faculty, students and members of the public to discuss opportunities to improve A2J for justice seekers. Several faculties led A2J Week events, either directly through law

faculty programs or by participating in their respective bar association A2J Week activities.

- **Faculty-led Projects or Programs:** Focusing on areas like Indigenous Legal Orders, Indigenous Law, criminal law, prison law, artificial intelligence, law and social justice, youth outreach, or legal education generally.
- **A2J Data and Design Labs:** Bringing together students, faculty, and practitioners to consider reform at the system level.
- **A2J Consortiums, Conferences, and Dean's Forums:** Generally organized by law faculty alongside judges, law faculty administrators, legal practitioners, and community advocates to discuss A2J principles and emerging issues that inform scholarship and practice.
- **Student-led Clubs:** Connection points and events that reflect student interests at the faculty, university, and social justice level.

These initiatives are not intended to be interpreted as supporting students to meet A2J competencies. Instead, they reflect extra-curricular opportunities to engage in A2J learning, training, and skill development.

III. Pathways in Action: Key Findings

We examine the competency findings against our pathways research to assess which competencies are taught across the curriculum, and gaps that should be filled in the future. Accounting for the limitations set out in Part 2, the project team has made some key observations:

1. **A2J education is present in every law school.** Each of the 24 Canadian law schools offers one or more opportunities for students to engage with A2J, whether through dedicated courses, modules in other courses, clinical opportunities, or other initiatives.
2. **Broad range of A2J coverage.** A2J appears in a wide range of courses, reflecting the field's cross-cutting nature. But it remains unclear to what extent students are exposed to A2J in general courses like administrative law, civil procedure, etc.
3. **Few schools offer a dedicated A2J learning pathway.** While the range of offerings is vast, it is rare for law schools to offer opportunities specifically dedicated to A2J. Less than 10% of the courses reviewed included A2J in their title in one way or another. However, interestingly, some schools reported during our consultations that A2J was a stated objective of their program as a whole and, therefore, professors in their faculty

were expected to include A2J in some way in all their courses. This type of cross-cutting integration is more difficult to identify through a review of specific course descriptions.

4. **Limited scaffolding for reflective practice, lawyer wellness, and resilience training.** The themes identified through courses, clinics and other initiatives show limited opportunities for students to develop important skills such as reflective practice, resilience, and lawyer wellness.
5. **Significant opportunities to learn from community partners with lived experience.** Each school offers, primarily through their clinical programs, significant opportunities to learn from community partners with lived experiences, although the availability of these opportunities and their impact would require further research to identify.
6. **Fragmented assessment approaches.** The approaches to assessing A2J competencies in law schools are fragmented and could benefit from more dedicated opportunities at each law faculty for students to acquire A2J competency.
7. **Develop a focused, people-centred practice curriculum.** The most prevalent A2J-related competencies that feature across the curriculum are EDI/A2J followed by Indigenous Laws, Legal Orders and Reconciliation. There remains an opportunity to tie these core people-centred competencies to their practice-based application (e.g. client-centred practice skills, relationship management, communication, etc.) to bridge the entry-to-practice training gap.
8. **Dedicated funding opportunities to enhance skills-based, field school, and experiential learning experiences across the country.** The findings suggest that perhaps resource constraints may impact the breadth and depth of A2J instruction and clinical, experiential or other practice-based learning opportunities. These direct, client-centred engagement activities represent an important way to produce strong A2J education and competency in A2J practice skills.

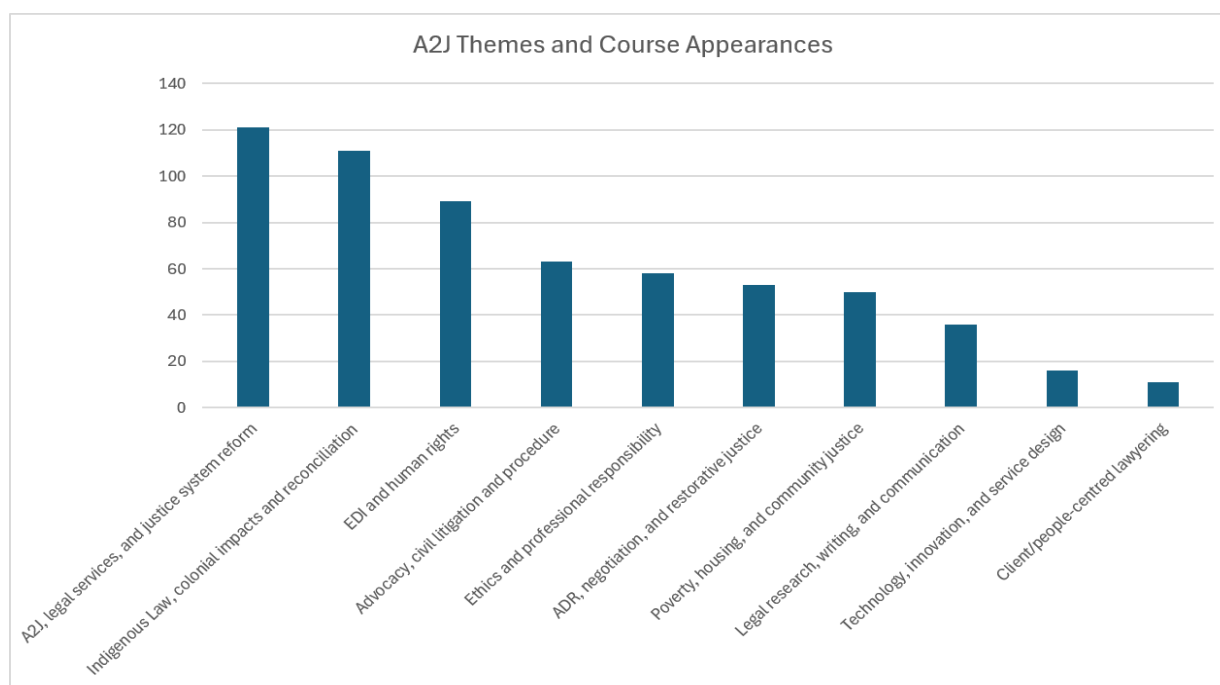
Two general or overarching findings emerging from the above listing include: a) different levels of A2J knowledge, skills, and exposure to practice-related experience in law school; and b) limited emphasis within the law school curriculum on mandatory A2J knowledge and skills-based training. Research also revealed the various pathways through which students at Canadian law schools can learn about A2J, as follows:

- courses specifically on A2J,

- courses in related fields where A2J is discussed (administrative law, law and poverty, civil procedure, etc.),
- courses offered through joint law programs (e.g. business, public administration, etc.),
- experiential learning opportunities (clinics, placements, etc.),
- reflective assessment methods, and
- non-course educational, school, or community initiatives.

From an A2J theme-based review, we gain further insights into the type of pathways that may lead to an A2J practice-ready lawyer:

Figure 8.0 A2J Themes Emerging across Courses



Themes are not mutually exclusive as a single course may appear under several A2J themes. The 121 courses directly tied to A2J knowledge and justice system reform, as compared to the 11 that focus on client- or people-centred lawyering, reflect an interesting organizing principle: A2J knowledge pathways are connected to, but distinct from, A2J skills-based and experiential or practice-readiness pathways. The following sections expand upon the findings identified here.

1. A2J Knowledge Foundations (via traditional, doctrinal course delivery)

Encouragingly, project research confirms that every law faculty educates students about A2J, to varying degrees. Some faculties offer dedicated, standalone courses on traditional A2J foundations, while others integrate A2J topics from substantive law courses, either directly or indirectly. Several courses across faculties introduce A2J theory and principles, or A2J-related themes and people-centred practice concepts. Some faculties incorporate this content as part of the mandatory/compulsory first-year (1L) curriculum program. But most courses or clinical programs are offered as upper-year electives.

Of the total courses examined, doctrinal courses emerge as the dominant course type across the curriculum (244; 76.5%). This finding contrasts with the skills-based and experiential courses, which appear in 37 and 38 records, respectively. This observation is particularly relevant when we examine the distribution of WCCP competencies appearing across the courses reviewed:

Table 1.0 WCCP Competency Alignment across 326 Canadian Law School Courses

WCCP Competency	Courses with documented alignment
1.3 EDI and A2J	168
3.1 Indigenous experiences/colonial impacts	108
1.1 Ethics/professional standards	59
3.2 Reconciliation in legal practice	59
6.5 Advocacy	44
5.2 Legal research	41
4.4 Collaboration/professional relationships	32
5.3 Legal analysis/develop strategy	23
2.2 Drafting legal documents	22
4.2 Establish client relationships	14
5.1 Information gathering/evaluation	14
7.1 Well-being (self and workplace)	14
1.2 Professionalism/self-reflection/mentorship	12
7.2 Work/file management	10
7.3 Responsible use of technology	10
6.3 Legal advice	6
2.1 Audience-centric communication	5
4.5 Emotional intelligence/trauma-informed practice	5
6.2 Client-centred approach	3

4.1 Assess suitability of lawyer-client relationship	2
6.1 Identify client goals/manage expectations	2
7.4 Billing/accounting/finance knowledge	2
4.3 Manage client relationships	1
6.4 Represent client interests	1
2.3 Timely communication	0

Client-centred approaches feature across more than one WCCP Competency Domain (e.g. Domains 4 and 6). These expectations involve active listening, empathetic communication, and trauma-informed practice. These appearances reflect courses that used specific WCCP terminology in their titles, course descriptions, and learning objectives/outcomes. Many other courses may feature competency domains not captured here because of limitations in available data.

Notably, the least-featured WCCP competencies relate closely to building and managing an ongoing lawyer-client relationship compared to the predominant focus on substantive knowledge and traditional lawyer skills. This may reflect a curricular gap because we know course descriptions and outcomes may understate what instructors cover and assess in each course.

A similar review against course type reveals how A2J course pathways tie to documented WCCP competency aims:

Table 2.0 Course Type and Documented Competency-based Pathways (Sample)

Course Type	Documented Competency(ies) Yield
Doctrinal	Concepts, principles, and theory related to: EDI/A2J; Indigenous law and legal orders; reconciliation; ethics and professional responsibility; substantive law
Skills-based	Ethics; drafting and legal writing; research; advocacy; legal analysis; interviewing/client relationships; technology
Experiential	A2J; advocacy; Indigenous experiences; reconciliation actions; collaboration; legal advice; interviewing/client relationships; client-centric approaches

Across the doctrinal course landscape, 52.9% support a direct link to EDI/A2J, with 37.7% emphasizing knowledge of Indigenous Laws, Legal Orders, and reconciliation. Comparatively, establishing and maintaining client relationships appear less frequently (15.9%). The WCCP

expressly makes client relationship management and advice core entry-to-practice expectations, so this is a meaningful A2J educational pathway gap.

Skills-based courses offer the highest yield for achieving WCCP outcomes. These courses routinely combine client communication, drafting, analysis, and professional responsibility, among others. Legal advice and communication also dominate across the experiential learning category.

The law school curriculum concentrates A2J pathway opportunities within the upper-year course offerings. The first-year course outline emphasizes doctrinal-based learning. Of the 48 1L A2J courses examined, only three are classified as skills-based, with two as experiential. Taken with the 74.8% of courses classified as “electives”, the pathway to obtain substantial A2J knowledge and competencies remains optional for students, rather than establishing a guaranteed foundation throughout the curriculum. The gap that emerges from this data is that there is a weaker transition model to support student knowledge about A2J issues and how to integrate that learning into people-centred practice skills that connect to key competencies like interviewing, identifying client goals, client communication, maintaining client relationships, and practice management.

2. Legal Clinics, Field Schools, and other Experiential Learning Activities

All law faculties across Canada offer a clinical or externship experience that places students into community-based service or advocacy roles. Some have a specific A2J/social justice focus, and others provide limited representation and advice services to people in the criminal justice and family justice systems.

Clinical and experiential education offers a stronger bridge from A2J knowledge to practice skills than the standalone, course-based pathway. Across the clinical, field-based, and experiential learning activities, EDI and A2J appear in 67% of the records. Skills related to advocacy, legal research, drafting, and legal analysis reveal strong representation across the board. Students receive substantial opportunities to bring their doctrinal, foundation-based knowledge into practical legal work and community legal service. Lived experience instruction is also factored into the analysis and varies across courses and clinical experiences where community members and guest speakers come into the doctrinal or skills-based classrooms.

Community-based clinics dominate, followed by faculty- or student-led clinics. Using a similar theme-based review applied to other sections, the following thematic A2J pathways emerge and tie closely to the WCCP expectations:

Table 3.0 A2J Clinical Pathways and Competency Yields (across 326 records)

A2J Clinic/Experiential Activity	# of appearances	Primary WCCP Competency Yields
Direct client services/legal aid	59	A2J/EDI; advocacy; information gathering; research; drafting
Poverty, housing, and income security	36	A2J; advocacy; information gathering; legal analysis
Public interest/systemic advocacy/law reform	34	Advocacy; A2J; analysis; research; information gathering
Equality/human rights/anti-discrimination	27	A2J; advocacy; research; drafting
Family, elder law, and gender justice	21	A2J; information gathering; advocacy; file management
Dispute resolution/mediation	17	Information gathering; advocacy; drafting; research; analysis
Criminal/prisoner legal services	11	A2J; information gathering; advocacy; drafting
Indigenous justice/reconciliation	10	Indigenous experience; A2J; reconciliation; advocacy
Health/disability/mental-health justice	9	A2J; information gathering; advocacy; analysis
Immigration	8	A2J; information gathering; advocacy; research
Business/finance/investor	7	A2J; communication; advocacy
Technology/innovation/service design	2	Technology; A2J; communication; drafting

The strongest multi-competency density across clinical and experiential activities occurs in dispute resolution and mediation, health/disability/mental health justice, public-interest/systemic advocacy, and law reform.

The distribution of WCCP competencies across records also reveals important similarities and distinctions, with the course pathway information. WCCP Competencies across Clinical and Experiential data appear in Appendix J. The findings support the earlier statement that clinical and experiential learning do more of the heavy lifting to bridge substantive knowledge into A2J practice. Students practice client interviewing, information gathering, drafting, research, advocacy, legal advice, and file management on a much greater scale. But we also know that publicly available data on outcomes and learning objectives rarely reflect the full scope of people-centred, A2J skill-

building. As such, and like the findings shown in the course review, the absence of WCCP competencies over client communication, identifying and managing client goals and expectations, applying a client-centred approach, and attention to well-being, among others, does not mean that clinical and experiential opportunities do not offer client-centred practice training. But the absence of explicit connections to these people-centred competencies in the available data that may influence student choice over a given program reflects an important gap to resolve.

The strongest clinical pathway combines direct client service with structured competency practice. Other clinical and experience-based findings include the following:

- **Client-centred practice gap:** Clinics frequently document client communication, interviewing, research, advice and advocacy, but do not consistently report whether students learn how to identify client goals, manage client expectations, maintain ongoing communication and relationship-building, or specifically apply a client-centred approach.
- **Transition to Practice:** Competencies like file management appear generally, but there are several practice-based competencies (e.g. WCCP Domain 7) that are noticeably absent from the public information.
- **Evidence of Learning:** The clinical and experiential assessment data did not consistently provide conclusive findings on learning outcomes or expectations. Many clinics likely provide substantial competency development, but that could be better documented across the public domain.

Based on the information available for the study, there is an opportunity to amplify the clinic-based A2J experience by making a clearer connection to client-centred competencies stemming from the WCCP.

3. Faculty and Student-led A2J Pathways

Conferences/symposiums, experiential learning, and formal programs emerge as the strongest pathway opportunities through faculty-led initiatives.

Table 4.0 Faculty-led A2J Pathways (selection across 189 records)

Faculty-led Pathway	# of Activities	A2J Competency
Conference/Symposium	34	A2J awareness; justice-system debate; equality; client-centred ideas; interdisciplinary exchange
Experiential/Applied learning	16	Advocacy; technology; professional identity formation; Indigenous Laws/Legal Orders
Centre/Institute/Lab/Hub	12	Research infrastructure; innovation; A2J collaboration; knowledge generation
Knowledge mobilization	11	Public legal education; A2J awareness
Formal program/curricular pathway	10	Sustained contextual knowledge; Indigenous law; social justice; professional specialization
Research/scholarship	6	Evidence gathering; competency research; justice measurement
Funding/institutional support	5	A2J programming
Institutional commitment/ statement	3	Signals institutional priority
Innovation/outreach	3	Community connection; justice innovation

Table 5.0 WCCP Competency Alignment across Faculty-led Activities (n = 100 from Table 4.0)

WCCP competency	Faculty-led activities with documented alignment
1.1 Ethics/professional standards	1
1.2 Professionalism/self-reflection	5
1.3 EDI and A2J	56
2.1 Audience-centred communication	6
2.2 Legal documents/drafting	1
2.3 Timely communication	0
3.1 Indigenous experiences/colonial impacts	11

3.2 Reconciliation in practice	4
4.1 Suitability of lawyer-client relationship	0
4.2 Establish client relationships	1
4.3 Manage client relationships	0
4.4 Professional collaboration	7
4.5 Emotional intelligence/trauma-informed practice	2
5.1 Information gathering/evaluation	1
5.2 Legal research	2
5.3 Legal analysis/strategy	2
6.1 Client goals/expectations	0
6.2 Client-centred approach	4
6.3 Legal advice	0
6.4 Represent client interests	1
6.5 Advocacy	5
7.1 Well-being (self and workplace)	1
7.2 Work/file management	1
7.3 Technology	5
7.4 Billing/accounting/finance	0

The WCCP competency alignments are encouraging because they demonstrate a strong connection to EDI and A2J education and skills, followed by Indigenous Peoples' experiences and colonial impacts. But, they do not reveal a clear route for many other key client-facing A2J competencies that would complete an A2J educational pathway. Also, missing competencies are largely associated with managing clients in practice. There are no explicit faculty-led records that demonstrate how timely communication, maintaining the client relationship, and identifying client goals are supported. This is not to say that these competencies are not covered elsewhere in the A2J pathway landscape, but that faculty-led initiatives focus heavily on the broader justice system issues, contextual dimensions of legal practice, and scholarship. There appears to be an opportunity to integrate relational, advisory, and practice-management education and training into these activities.

4. A Note About Assessment Methods

Assessment methods vary, with most resembling typical midterm/final exam or research paper models, with a small portion of assessment done by class participation. Select faculties (for example, University of Calgary, Thompson Rivers, and University of Victoria, among others) incorporate more reflective-style assessment options for their courses such as:

- Reflective journals or essays on student skill development;
- Role-play exercises and podcasts;
- Discussions and activities on professionalism in inter-societal contexts.

Across the 167 records with a documented evaluation method, traditional written exams, papers, essays, memos, research and drafting dominate (120 courses; 71.9%). Emerging methods include participation activities (78 courses; 46.7%) followed by oral advocacy or presentations (50 courses; 29.9%). Numbers exceed the total count because courses often adopt more than one assessment type. Explicit interpersonal, or people-centred evaluation, remains lowest at six courses (3.6%). Generally, there appears to be only limited scaffolding of course content or assessments for comprehensive reflective practice and resilience. The fragmented assessment approaches make it difficult to measure how, and to what extent, people-centred practice competencies are tested.

Examining assessment data across the full dataset also reveals some important findings. Written work appears in 81% of all doctrinal courses coded with an assessment or evaluation category, compared to 73.3% of skills-based and 22.7% of experiential courses. Skills-based courses also tend to diversify assessment, as follows:

- 36.7% oral/performance assessment,
- 30.0% reflective exercises, and
- 16.7% interpersonal/client-centred performance.

Nine faculties offered deeper insights into alternative assessment methods used to draw out competency-building opportunities in unconventional ways. Activities like debriefing exercises, role-play or simulation, and podcasts prompt students to develop and demonstrate diverse communication strategies, contextual practice techniques, accessible knowledge sharing and translation, and problem-solving. Assessments like mock human rights complaints, and practice engaging with Indigenous dispute-resolution skills introduce client- and community-centred solutions and the ability to draft reflective arguments and outcomes. These, and other efforts to challenge students to redesign the legal service delivery model, show that competency assessments can draw from various outputs and observable behaviours that bring life to substantive law.

Although the regulatory guidance expects lawyers to communicate, establish relationships, advise, negotiate, and manage client needs and expectations, the law school assessment models still place substantial weight on a student's ability to write about or analyze the law instead of measuring how well they can work effectively with clients. This finding is restricted to assessment models used

at the course level only. Clinical and experiential learning opportunities did not consistently reveal assessment methods to generate a similar, reliable analysis.

5. Mapping the Overall A2J Educational Pathways

Five pathways emerge from the research data, and help to showcase how each one delivers an important educational function:

Table 6.0 Principal Educational Functions Associated with Each Pathway

Pathway	Principal educational function
Doctrinal courses	Introduce and deepen justice, substantive law, ethics, equality, Indigenous Law and Legal Orders, and analytical knowledge
Skills courses	Rehearse communication, drafting, interviewing, negotiation, advice and advocacy
Clinics/experiential learning	Integrate skills into supervised client or practice contexts
Student-led initiatives	Build A2J identity, public-interest orientation, community connection and initiative
Faculty-led initiatives	Create an institutional A2J ecosystem through research, innovation, public engagement and contextual learning

Each pathway may share interconnected links, but they occupy distinct stages of the overall A2J competency development journey. A regional review notes that Quebec (93.4%) and Atlantic Canada (87.2%) dominate the doctrinal course space. Western Canada leads the skills-based course model (17.1%), with Ontario setting a strong record for experiential opportunities (16.7%). Quebec's doctrinal lead does not mean that applied learning is absent from the curriculum. Interestingly, Quebec's A2J educational model tends to incorporate A2J themes within substantive law courses. We also know from the earlier course-related data findings that dedicated A2J courses provide depth, but embedded A2J integration in substantive law courses offers greater reach, especially when done in mandatory/foundational courses in first or second year.

At the course level, and grouping the 296 courses that do not use A2J-specific titles, the following substantive law categories emerge as potential pathways for A2J integration:

Figure 9.0 Integrating A2J across the Substantive Law Curriculum (n = 228 records)



The research confirms that A2J is not confined to courses bearing justice-oriented titles. Rather, it often appears within and across traditional courses like administrative law, civil procedure, criminal law, ethics and professionalism, Indigenous Law and Legal Orders, human rights, health and family law, and dispute resolution, among others. Notably, Indigenous Law and Justice feature prominently across the substantive law domain. Expanding A2J education in Canadian law schools requires expanding the curriculum to include doctrinal, skills-based, and experiential learning about Indigenous Peoples, Law and Legal Orders, colonialism, and meaningful reconciliation practices.

The student initiatives and clinical data reveal important practice-ready pathways:

Table 7.0 A2J Educational Pathways across Student and Clinical Data

Pathway	Learning Landscape	Core skills/ knowledge	WCCP competency development ¹⁶⁵	Clinical and Initiative-based Evidence
1. A2J orientation and professional identity	Student groups, PBSC, A2J committees, public-interest organizations,	Recognize barriers to justice; EDI; professional networks; public-	1.2, 1.3, 3.1, 3.2, 4.4	Participation; research; public education; community activity; advocacy initiatives

¹⁶⁵ Refer to the WCCP for the relevant competency title associated with these numbers, *supra* note 88.

	Indigenous experiences/EDI initiatives	interest orientation		
2. Introductory clinical prep	Introductory clinic courses, practicums	Interviewing; information gathering; communication; ethics; research	1.1, 2.1, 4.2, 5.1, 5.2	Interviews/intake; research; legal information; reflective learning where documented
3. Supervised direct client service	Legal-aid/community clinics, family, housing, disability, immigration, Indigenous and poverty-law clinics	Client interaction; drafting; research; advice; collaboration	2.1–2.2, 4.2–4.5, 5.1–5.3, 6.3	Client intake; research; advice; legal documents; case/file work
4. Advocacy and problem solving	Intensive clinics, litigation clinics, tribunal work, dispute resolution, externships	Advocacy; strategy; representation; negotiation; systemic problem solving	5.1–5.3, 6.3–6.5	Written argument; hearings; advocacy; litigation; negotiation; legal strategy
5. Specialized A2J practice	Indigenous, health, disability, poverty, migrant, elder, anti-discrimination and systemic clinics	Context-sensitive legal service; trauma awareness; specialized advocacy; interdisciplinary work	1.3, 3.1–3.2, 4.4–4.5, 6.3–6.5	Specialized client work; community collaboration; law reform; strategic advocacy

6. Discussion – Gaps and Opportunities

Our review of A2J educational pathways identified key strengths discussed above – including growing interest in Indigenous legal traditions, strong distribution of A2J pathways across Canada, and a range of clinical opportunities that afford at least some students the possibility to engage in different competency development. However, we note key gaps and opportunities that law faculties and other legal education providers could consider as they continuously adjust and adapt their programs:

- While A2J seems well integrated into elective opportunities, placing it into the **mandatory** curriculum – either through dedicated courses or modules in other courses – would enhance A2J education for all future legal professionals;
- Integrating A2J **earlier** into the curriculum, as some faculties already do, would allow students to approach the rest of their studies through an A2J lens.
- Developing additional **skills-based** and **experiential** courses would complement the strong offering of doctrinal courses and allow students to acquire competencies that, while of key importance in Canadian competency frameworks, are less present in law schools. For example, the Australian data highlights supervised workplace training opportunities and special assessment practices as potential A2J practice gateways.
- The development of **dedicated** A2J offerings would reinforce the importance afforded to that theme, beyond discrete integration into other courses.
- Instructors may want to consider **non-traditional assessment methods** that test and develop a different range of competencies, for instance reflective assessments, resilience training, etc.
- Some **themes** may benefit from further emphasis throughout the A2J curriculum, including people-centred lawyering and technology. Correspondingly, some **competencies** may benefit from additional pathways, including building and managing lawyer-client relationships, and providing accessible communication, active listening, and a trauma-informed practice. These competencies offer an opportunity for the law school curriculum to help students transition from knowledge to practical skills.

◆ A CALL TO ACTION FOR A2J EDUCATION

These findings call for action. Specifically, they call upon law schools, the legal profession, and other justice stakeholders, to think about how A2J makes its way – or not – into their educational offerings, and how these offerings contribute – or not – to developing A2J competencies in legal professions whose mission should include contributing to resolving the A2J crisis.

These findings also led our own team to consider further action. As the CBA *Futures* report noted, legal education providers beyond law schools and legal regulators have a role to play in providing students with greater flexibility and choice when it comes to how and what they learn.¹⁶⁶ To contribute, in a very small way, to that endeavour, we set out – as part of our A2J Education Initiative – to fill some of the gaps identified in this report.

We developed a stand-alone, online A2J course that will be freely available to anyone. The course will provide a general introduction to A2J: the fundamentals of the crisis, the causes of unmet legal needs, the consequences of leaving legal problems unresolved, and a window into the solutions and reforms that have been or could be advanced to tackle the situation. A first part of the course will launch in Fall 2026; the rest will follow in due course.

This course is necessarily limited in scope. An introductory course by design leaves aside many details and nuances and, perhaps more importantly, the online format will not allow for the types of interactions, reflective assessments, and direct contact with justice seekers that enhance the teaching of A2J and the students' A2J educational experience. Despite these limitations, however, we hope that the course will serve as a gateway for students who may not have access to A2J education in their law school, or for legal professionals who have yet to study A2J, to start exploring the field and, perhaps, continue with future educational offerings afterwards.

As Prof. Lapper once suggested, there may be an opportunity to develop that course further into an A2J credential. Sponsored, perhaps, by a national A2J or professional organization, this credential would encourage students to take several, complementary opportunities to develop their A2J competencies, recognize their efforts, and that would create a community of A2J-minded students and legal professionals in Canada. Regardless of where these initiatives take us, we hope that others will join us in developing educational offerings to enhance the A2J training of the next generation of legal professionals.

¹⁶⁶ CBA, *Futures Report*, *supra* note 23 at 59.

◆ APPENDICES

Appendix A: OECD's People-centred Justice framework (the “Four Pillars”)¹⁶⁷



¹⁶⁷ OECD, *Framework*, *supra* note 98 at 26.

Appendix B: Implementation Status of TRC Call to Action 27 across Provincial and Territorial Law Societies

Law Society	Status	Notes
Alberta	Removed	<i>The Path</i> (mandatory course) eliminated per Bill 13 <i>Regulated Professions Neutrality Act</i> ¹⁶⁸
British Columbia	Implemented	Indigenous Intercultural Course ¹⁶⁹
Manitoba	Implemented	CBA <i>The Path: Your Journey Through Indigenous Canada</i> course ¹⁷⁰
New Brunswick	Partial	Indigenous content captured by bar admission program. ¹⁷¹ Cultural competency course still under development. ¹⁷²
Newfoundland & Labrador	Implemented	Indigenous Cultural Competency section offered in the bar admission course. ¹⁷³
Northwest Territories	Implemented	Mandatory Cultural Competency Course: selection from one of <i>The Path – Your Journey Through Indigenous Canada</i> , or <i>An Introduction to Living Well Together</i> , or <i>The University of Alberta’s “Indigenous Canada”</i> . ¹⁷⁴
Nova Scotia	Implemented	Content covered through CPLED bar admission program.

¹⁶⁸ *Regulated Professions Neutrality Act*, SA 2025, c R-13.3, s 8 prohibits a professional regulatory body from requiring a regulated professional or person seeking to become a regulated professional to complete education or training that addresses one or more of the following matters: (a) cultural competency; (b) unconscious bias; (c) diversity, equity or inclusion; (d) any other matter specified in the regulations.

¹⁶⁹ Law Society of British Columbia, “Indigenous Intercultural Course” (Vancouver, last visited 18 August 2026), online: <<https://www.lawsociety.bc.ca/for-lawyers/professional-development/indigenous-intercultural-course/>>. See also *Law Society Rules*, Part 3 – Protection of the Public, Rules 3-28.1, 3-28.11, and 3-28.2.

¹⁷⁰ Law Society of Manitoba, “The Path” (Manitoba, last visited 18 August 2026), online: <<https://lawsociety.mb.ca/regulation/education-requirements/the-path/#toggle-id-16>>. See also *Rules of the Law Society of Manitoba* (e.g. Rule 2-81.1(7) – a failure to complete *The Path* without reasonable excuse may constitute professional misconduct).

¹⁷¹ Law Society of New Brunswick, “Bar Admission Program Guide” (8 May 2026) at 22, online (pdf): <https://lawsociety-barreau.nb.ca/uploads/LSNB_BAP_Program_Guide_EN_2026_20271.pdf>.

¹⁷² Law Society of New Brunswick, “2026 Annual Report” at 109, online (pdf): <<https://lawsociety-barreau.nb.ca/uploads/2026AnnualReport.pdf>> (“Final drafts of Module 2 (Treaty Rights in Canada) and Module 3 (Royal Proclamation) have now been completed, and work continues the additional modules”). See also Law Society of New Brunswick, Truth and Reconciliation Committee, *Council Policy 23: Path to Reconciliation* (13 September 2019), online (pdf): <https://flsc-s3-storage-pub.s3.ca-central-1.amazonaws.com/LSNB_Council_Policy_23_Pathway_to_Reconciliation.pdf>.

¹⁷³ Law Society of Newfoundland and Labrador, “Advancing Reconciliation Through Indigenous Engagement and Access to Justice Initiatives” (3 June 2026), online: <<https://lsnl.ca/advancing-reconciliation-through-indigenous-engagement-and-access-to-justice-initiatives/>>.

¹⁷⁴ Law Society of the Northwest Territories, *Mandatory Cultural Competency Course*, online: <<https://lawsociety.nt.ca/for-lawyers/mandatory-cultural-competency-course/>>.

Nunavut	Implemented	Content covered through CPLED bar admission program. Requirement for all practising members to complete one hour of cultural competency continuing legal education each year. ¹⁷⁵
Ontario	Implemented	<i>Shared Pathways: Legal Education About Indigenous Ontario</i> , the recently approved mandatory Indigenous cultural training course. ¹⁷⁶
Prince Edward Island	Implemented	Cultural competency training required of all practising members. Reference to CBA <i>The Path: Your Journey through Indigenous Canada</i> . ¹⁷⁷
Quebec	Implemented	Licensing candidates must complete a 3-hour online course, “ <i>Droits, Réalités Autochtones et Compétences Culturelles pour les Avocats</i> ”. ¹⁷⁸
Saskatchewan	Implemented	Content covered through CPLED bar admission program, and through various continuing professional development opportunities. ¹⁷⁹
Yukon	Implemented	Continuing professional development on cultural competency that meets the Call to Action 27 recommended content. ¹⁸⁰ Subsidy available to members who enroll in Yukon University course, <i>Yukon First Nations 101</i> . ¹⁸¹

¹⁷⁵ Law Society of Nunavut, “Continuing Legal Education” (last visited 18 August 2026), online:

<https://www.lawsociety.nu.ca/index.php/en/continuing-legal-education-cle?language_content_entity=en>.

¹⁷⁶ Law Society of Ontario, “Indigenous Cultural Training course” (30 April 2026), online: <<https://lso.ca/about-lso/initiatives/indigenous-cultural-training-course>> (“The course will be available to licensees in late 2026. The requirement will come into effect on January 1, 2027. Licensees subject to CPD requirements as of that date will have two years to complete the free, six-hour, online course. Completion of the course for current licensees is required by December 31, 2028”).

¹⁷⁷ Law Society of Prince Edward Island, *Mandatory Continuing Professional Development Policy*, (updated June 2024) at s 3(b), online (pdf): <<https://lawsocietypei.ca/media/files/Mandatory%20CPD%20Policy,%20June%202024.pdf>>.

¹⁷⁸ Barreau du Québec, « L’engagement du Barreau envers les communautés autochtones » (last visited 27 August 2026), online: <<https://www.barreau.qc.ca/fr/ordre/equite-diversite-engagement-barreau/engagement-barreau-communautes-autochtones/>>.

¹⁷⁹ Law Society of Saskatchewan, *Truth and Reconciliation Continuing Professional Development* (December 2025), online (pdf): <<https://www.lawsociety.sk.ca/wp-content/uploads/truth-and-reconciliation-continuing-professional-development-1.pdf>>.

¹⁸⁰ Law Society of Yukon, “CPD Requirements”, online: <<https://lawsocietyyukon.com/for-the-lawyer/continuing-professional-development/>>.

¹⁸¹ Law Society of Yukon, “Yukon First Nations 101”, Yukon University, online: <https://lawsocietyyukon.com/cpd_event/yukon-first-nations-101/>.

Appendix C: Institutional Content Headings for Pathways Scan

- Assessment methods (if available)
- Campaigns or Initiatives
- Competency
- Course/program titles
- Course/program type (e.g. JD, certificate, clinic, continuing education, regulatory, etc.)
- Course delivery (in-person, online, hybrid, etc.)
- Course descriptions (including links to past or current syllabi)
- Course level (e.g. first year, upper year, etc.)
- Course objectives
- Credit (weight or hours)
- Learning (including outcomes and competencies, where indicated)
- Professional Development
- Resources
- Training

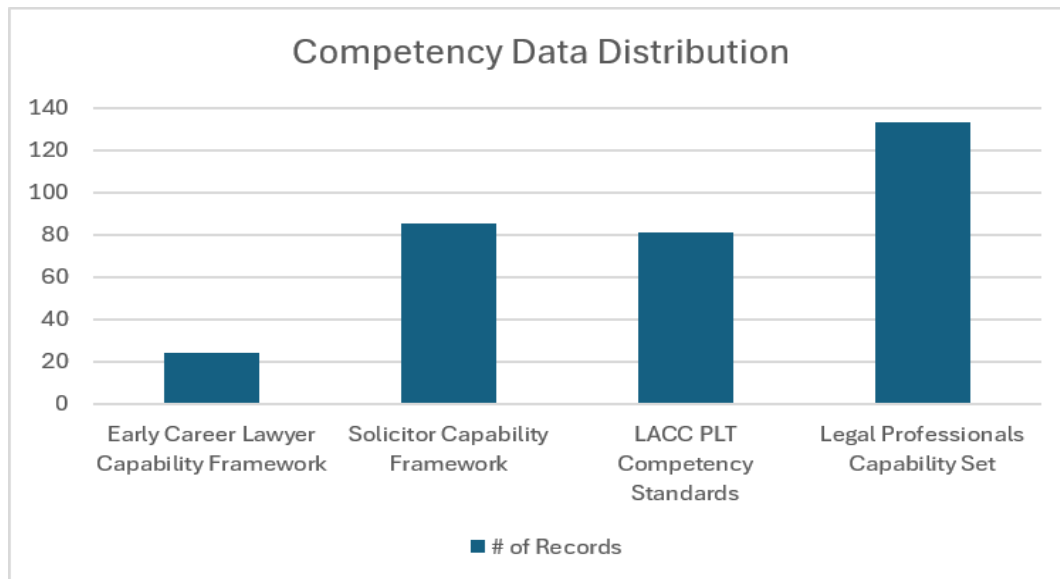
Appendix D: A2J Pathways Keyword Search Terms

- Access-to-Justice
- Administrative Justice / Law
- Civil Litigation
- Client Communication / Client Interviewing
- Clinic
- Community engagement
- Criminal Law (focus on criminal justice and/or courses that build in A2J components)
- Dispute Resolution
- Diversity
- Equality / Equity (inequality/inequity)
- Ethics
- Experiential
- Family Law (family justice)
- Humanities
- Human Rights
- Inclusion / Inclusivity
- Legal Aid
- Legal technology
- Poverty Law
- Professional responsibility
- Public Interest / Public legal education
- Restorative Justice
- Rule of Law
- Self-represented litigant
- Social Welfare Law
- Social Work

Appendix E: List of Institutional Content Headings

- ‘For Lawyers’ or ‘For Solicitors/Barristers’
- Micro-credential
- Training
- Codes of Conduct
- Campaigns or Initiatives
- Competency
- Learning
- Membership (restricted to competency requirements for eligibility criteria)
- Professional Development
- Resources

Appendix F: Competency Data Distribution across frameworks (Australia)



Note: n = 323 records.

Appendix G: List of Canadian Law Faculties

The project team gathered publicly available data from 24 law faculties across Canada. The complete list of faculties appears below.¹⁸²

- Dalhousie University – Schulich School of Law
- Lakehead University – Bora Laskin Faculty of Law
- Lincoln Alexander School of Law at Toronto Metropolitan University
- McGill University – Faculty of Law
- Queen’s University – Faculty of Law
- Thompson Rivers University – Faculty of Law
- University of Alberta – Faculty of Law
- University of British Columbia – Peter A. Allard School of Law
- University of Calgary
- Université Laval – Baccalauréat en Droit*
- University of Manitoba – Faculty of Law
- Université de Moncton – Faculté de Droit*
- Université de Montréal – Faculté de Droit*
- University of New Brunswick – Faculty of Law
- University of Ottawa
 - Droit civil (Civil Law)*
 - Common Law
- Université du Québec à Montréal – Faculté de science politique et de droit*
- Université du Québec en Outaouais – Département de droit*
- University of Saskatchewan – College of Law
- Université de Sherbrooke – Faculté de droit*
- University of Toronto – Faculty of Law
- University of Victoria – Faculty of Law
 - Juris Doctor and Juris Indigenarum Doctor
- University of Windsor – Windsor Law
- Western University – Western Law
- York University – Osgoode Hall Law School

¹⁸² Where faculty information appeared in French (identified with * in the list above), the project team used a combination of Google Translate online tools validated with internal translation expertise from the project staff to develop comparative information in English.

Appendix H: Data Profile of Course Records (across 24 law faculties)

Data Profile	Profile
Courses that specify “access to justice” (or a direct A2J link) in the title	30 (9.4%)
Credit Value	
Mean credit value	3
Median credit value	3
Courses with a “0” credit value assigned (participation only)	2
Records with a single assigned credit value	304
Required / Elective	
Required courses	78
Elective courses	231
Course level	
1L courses	48
2L courses	12
2L/3L courses	267
3L or 4L courses	10

Note: Graduate programs/courses excluded from review. The credit averages exclude entries that were consolidated by the project team, or that represent limited outliers.

Appendix I: Sample Areas of Law Serviced through Canadian Law School Clinics

- Business Law
- Civil
- Criminal
- Disability Rights
- Employment
- Environmental law
- Family (incl. intimate partner violence issues)
- Housing
- Human Rights
- Immigration
- Indigenous Law and Legal Traditions
- Poverty Law
- Prison law

Appendix J: WCCP Competencies across 133 Clinical/Experiential Learning records

WCCP competency	Clinical/experiential records
1.3 Equality/diversity/access to justice	65
6.5 Advocacy	38
5.2 Legal research	30
5.1 Information gathering/evaluation	28
2.2 Legal documents/drafting	22
5.3 Legal analysis/strategy	22
1.1 Ethics/professional standards	16
2.1 Audience-centred communication	14
7.2 Work/file management	14
6.3 Legal advice	13
4.2 Establish client relationships	12
4.4 Professional collaboration	12
3.1 Indigenous experiences/colonial impacts	10
6.4 Represent client interests	9
1.2 Professionalism/self-reflection	9
4.5 Emotional intelligence/trauma-informed practice	8
3.2 Reconciliation in practice	6
7.3 Technology	2
4.1 Suitability of lawyer-client relationship	2
4.3 Manage client relationships	1
2.3 Timely communication	0
6.1 Client goals and expectations	0
6.2 Explicit client-centred approach	0
7.1 Well-being	0
7.4 Billing/accounting/finance	0